

DATED: 202[]

[]

AND

IARNRÓD ÉIREANN – IRISH RAIL

AND

CÓRAS IOMPAIR ÉIREANN

MAINTENANCE SUPPORT SERVICES CONTRACT (“MSSC”)

Train Protection System (National Roll Out) Project

ETCS Level 1 Trackside System
(Contract Tender Ref:)

Market Contract Version : Date

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THIS AGREEMENT made the _____ day of _____ 2022

BY AND BETWEEN:

- (1) **IARNRÓD ÉIREANN – IRISH RAIL**, Connolly Station, Amiens Street, Dublin 1, Ireland (“**the Client**”), and
- (2) **CÓRAS IOMPAIR ÉIREANN** - Heuston Station, Dublin 8, Ireland (“**CIE**”),

AND

- (3) **[INSERT]**, of **[INSERT]** (Company Registration No. **[INSERT]**) (who shall be referred to as “**the Contractor**” and who shall be severally liable for the Contractor’s obligations under this agreement)

WHEREAS:

- (A) Iarnród Éireann is the operator of the Network.
- (B) Iarnród Éireann has engaged the Contractor for the design, supply and installation of a ETCS Level 1 Trackside System in respect of its rail network across the whole country (together with further ancillary works and services) by way of an agreement dated on or about the date , hereby referred to as the “**D&B Contract**”.
- (C) Iarnród Éireann wishes to appoint the Contractor to provide certain services (the “**Services**”) in respect of the operation and maintenance of the NRO Trackside ETCS Level 1 Trackside System in accordance with the terms and conditions of this MSSC.
- (D) CIÉ is the owner of certain lands, buildings, property and facilities in the Network, and the Contractor has agreed to provide certain warranties, insurances, undertakings, covenants and indemnities in favour of CIÉ pursuant to the terms contained in this MSSC and CIÉ is joined as a party to this MSSC for the sole purpose of enforcing these warranties, insurances, undertakings, covenants and indemnities.

IT IS HEREBY AGREED AS FOLLOWS:

1 DEFINITIONS AND INTERPRETATION

1.1. In this MSSC words and expressions shall have the meanings:

- (a) set out in Schedule 1 (Definitions); or
- (b) if not set out in Schedule 1 (Definitions), as set out in the D&B Contract.

1.2. In this MSSC unless the context otherwise requires:

- (a) words denoting persons or parties shall include individuals, partnerships, firms and corporations and any other person having legal capacity and shall include the successors and permitted assigns of such persons. Reference to a “company” shall be construed so as to include any company, corporation or other body corporate, wherever and however incorporated or established;

- (b) a reference to any “Party” shall mean either Iarnród Éireann or the Contractor as the context requires, and reference to “Parties” shall mean both of them;
- (c) words in the singular also mean in the plural and the other way round;
- (d) words in the feminine also mean in the masculine and neuter and the other way round;
- (e) the headings and table of contents are inserted for convenience only and shall not affect the construction of this MSSC;
- (f) any reference to any enactment, directive, Law and/or Standard is a reference to it as in force for the time being, taking into account any amendment, consolidated, re-enactment and/or replacement, and includes all instruments, orders or regulations made under, or deriving validity from such enactment, directive, Law and/or Standard;
- (g) any references to a Clause or Schedule is a reference to that clause or schedule of this MSSC and any references in a Schedule to a paragraph is a reference to that paragraph of that Schedule;
- (h) references in this MSSC to the “Trackside NRO ETCS Level 1 Trackside System” is a reference to the Trackside NRO ETCS Level 1 Trackside System, including, the components thereof, as then current as of the date of reference;
- (i) references to “includes” or “including” shall mean without limitation;
- (j) references in this MSSC to costs and expenses which are to be reimbursed to or recovered by the person incurring the same shall be construed as references to an amount equal to the amount of such costs and expenses together with any VAT (other than VAT in respect of which that person or any member of a VAT group of which such person is a member is able to recover by way of credit or repayment in respect of such VAT from the relevant tax authority);
- (k) the giving of any consent or approval or comment or the withholding of the same by or on behalf of Iarnród Éireann shall not in any way relieve the Contractor of any of its obligations or of its duty to ensure the correctness accuracy or suitability of the matter or thing which is the subject of the consent, approval or comment;
- (l) reference to Iarnród Éireann and/or CIÉ shall include their respective successors and assigns;
- (m) reference to any Irish legal term for any action, remedy, method of judicial proceeding, legal document, legal status, court, official or any legal concept or thing shall, in respect of any jurisdiction other than Ireland, be treated as a reference to any analogous term in that jurisdiction.

1.3. In consideration of the payment of ten euro (€10) by CIE to the Contractor (receipt of which is hereby acknowledged), the representations, warranties, covenants and undertakings and indemnities set out in this MSSC shall extend to CIE and CIE is joined as a party to this MSSC for the purposes of receiving the benefit of such representations, warranties, covenants and undertakings and indemnities and enforcing them. CIE shall not have any liability to the

Contractor under this MSSC, whatsoever or howsoever arising and whether under principles of contract, negligence or otherwise, AND all liability under or in relation to this MSSC shall lie with either or both of Contractor and Iarnród Éireann, as applicable in the circumstances.

- 1.4. Where two or more persons are joined to this MSSC as contractors for the performance and delivery of the Scope of Services, and as the “Contractor” or the “Contractors” under this MSSC, then, they shall do so on a joint and several basis and shall be jointly and severally liable to each of Iarnród Éireann and CIE for the performance and delivery of the Scope of Services and of their obligations under this MSSC. It shall be necessary for each Contractor or Contractors to be party to this MSSC and execute same accordingly.

2 PARTIES' REPRESENTATIVES AND CONTRACT ADMINISTRATION

2.1. Parties' Representatives

Where not provided prior to the Commencement Date, then, within five (5) calendar days of the Commencement Date, Iarnród Éireann shall notify the Contractor of the name of the Iarnród Éireann's Representative and the Contractor shall notify Iarnród Éireann of the name of the Contractor's Representative.

2.2. Replacement of Representatives

- (a) Any replacement of a Party's Representative shall be notified to the other Party with at least seven (7) calendar days prior written notice, which shall be accompanied by the credentials of the individual appointed as a substitute Representative.
- (b) Iarnród Éireann may by notice in writing to the Contractor object to:
- (i) any replacement Representative suggested by the Contractor; or
 - (ii) the continued allocation of an existing Representative to the supply and provision of the Services,
- which objection shall be made in good faith and for service delivery and/or performance related reasons, which shall not be frivolous or vexatious.
- (c) Following receipt of an Iarnród Éireann objection issued in accordance with Clause 2.2(b), the Parties shall discuss in good faith the reallocation of the Representative resources in order to accommodate Iarnród Éireann objection. Where pursuant to those discussions, Iarnród Éireann's objection is not withdrawn by Iarnród Éireann, the Contractor shall promptly, replace such person with another individual of no less ability, training and qualifications.

2.3. Representatives' Authority

- (a) Iarnród Éireann and Contractor shall be entitled to assume, unless and until otherwise notified by the other, that the Iarnród Éireann Representative and the Contractor's Representative are authorised to exercise those rights and powers which are specifically mentioned in this MSSC and to exercise such other rights and powers and do such other things as are reasonably incidental thereto or necessarily to be implied from this MSSC.

- (b) The Iarnród Éireann Representative shall have no authority to amend this MSSC nor to relieve the Contractor of any of its obligations under this MSSC, save where acting strictly in accordance with the terms and conditions of this MSSC, including, without limitation, the Change Order provisions at Clause 5.

2.4. Representatives' Duties

- (a) The Iarnród Éireann Representative may from time to time, on an as-required and temporary basis, subsisting only for so long as strictly necessary in the circumstances, delegate to another person, of suitable seniority and experience, any of the duties, rights or powers vested in him and may (without prior approval of the Contractor) revoke any such delegation, provided that, no such delegation or revocation shall have effect until notified in writing to the Contractor's Representative.
- (b) Wherever in this MSSC the Iarnród Éireann Representative is required to exercise his discretion whether by the giving of a decision, opinion, consent or by expressing satisfaction or approval, or by determining value, or otherwise take action which may affect either the rights and obligations of the Contractor, then the Iarnród Éireann Representative shall exercise such discretion within the terms of this MSSC reasonably and fairly and having regard to all the circumstances.
- (c) The Contractor's Representative shall exercise overall supervision of the performance of this MSSC on behalf of the Contractor. He shall receive on behalf of the Contractor all consents, approvals, orders, instructions and information given by Iarnród Éireann's Representative. The Contractor's Representative shall have the authority to act and to commit the Contractor as if he were the Contractor for the purposes of this MSSC.

2.5. Instructions of the Iarnród Éireann's Representative

Instructions given by Iarnród Éireann's Representative, or by any person exercising delegated duties and authorities under Clause 2.4(a), shall be in writing, provided that, if for any reason it is considered necessary to give any such instruction orally, then, the Contractor shall comply therewith. Any such oral instruction shall be confirmed in writing by or on behalf of the Iarnród Éireann Representative as soon as is possible in the circumstances, including, without limitation, reflected in the minutes of the next following Review Meeting. Provided that, if the Contractor confirms in writing any such oral instruction, which is not promptly contradicted in writing by or on behalf of Iarnród Éireann's Representative, then, it shall be deemed to be an instruction in writing by Iarnród Éireann's Representative.

2.6. Contract Management and Governance Procedure

To facilitate the proper administration of the MSSC, the Parties shall conduct:

- (a) the Review Meetings; and
- (b) the Liaison Committee Meetings

in accordance with the terms of the Contract Management and Governance Procedure.

2.7. Mutual Trust

The Contractor and Iarnród Éireann shall:

- (a) act as stated in this MSSC and in a spirit of mutual trust, co-operation and coordination;
- (b) operate this MSSC, with reference to its essential purpose, being the support of the Trackside NRO ETCS Level 1 Trackside System, on a partnering basis, with both Parties sharing the commitment to service and to the economic and efficient delivery of the train services for Ireland;
- (c) procure that their respective delivery teams recognise and continue to exhibit behaviours which recognise the partnering nature of this MSSC.

3 THE SERVICES

3.1. Scope of the Services

The Contractor shall, for the Term, subject to and in accordance with the provisions of this MSSC, carry out the "**Services**" which shall comprise the following:

- (a) the provision of technical support services in respect of the TPS NRO Trackside ETCS Level 1 Trackside System which are to be compensated through the Fixed Charges as set out in **Schedule 8** (or calculated in accordance with Clause 8.3) for the applicable Year of the Term, including:
 - (i) the "Off-Site Technical Support Services" (as more particularly set out at Section 2.2 of Schedule 2);
 - (ii) the "On-Site Technical Support Services" (as more particularly set out at Section 2.3 of Schedule 2);
 - (iii) the "Spares Management Services" (as more particularly set out at Section 2.4 of Schedule 2);
 - (iv) the "Updating Services" (as more particularly set out at Section 2.5 of Schedule 2);
 - (v) the "Obsolescence and Technology Management Services" (as more particularly set out at Section 2.6 of Schedule 2);
 - (vi) the "Technical Library Services" (as more particularly set out at Section 2.7 of Schedule 2);
- (b) the provision of technical support services in respect of the SET System which are to be compensated through the Schedule of Rates including:
 - (i) the "On-Site Technical Support Services" (as more particularly set out at Section 3 of Schedule 2);
 - (ii) the "Training Services" (as more particularly set out In schedule 2);

- (c) the “Parts Services” in respect of the supply and management of Parts, in order to assist Iarnród Éireann in the provision of First Level Support (as more particularly set out at Section 2.4 of Schedule 2);
- (d) such other services as are to be reasonably to be inferred as being required as part of the Services to facilitate the implementation of the operation and maintenance of the Trackside NRO ETCS Level 1 Trackside System consistently with the Iarnród Éireann requirements for same (as set out herein or to be reasonably inferred from the MSSC);
- (e) such additional services as are directed by Iarnród Éireann in accordance with the relevant provisions of the MSSC;

in order to allow Iarnród Éireann to operate and maintain the SET System.

3.2. **MSSC Objectives**

- (a) The Contractor acknowledges Iarnród Éireann’s role in providing maintenance services to support the operation of the Network and shall provide Iarnród Éireann with such support as Iarnród Éireann reasonably requires to assist it in the provision of such services. The Contractor shall not act or omit to act in any way during the performance of its obligations under this MSSC in a manner that shall prevent or hinder Iarnród Éireann from carrying out such services, nor prevent or hinder Iarnród Éireann from discharging its responsibilities as Network operator and manager.
- (b) The Contractor acknowledges that Iarnród Éireann is a best value authority and is required to make arrangements to secure continuous improvement in the way it exercises its functions, having regard to a combination of economy, efficiency and effectiveness. The Contractor shall assist Iarnród Éireann to discharge this duty and agrees to negotiate in good faith any changes to this MSSC in order for Iarnród Éireann to achieve best value.
- (c) The Parties acknowledge that the Services do not include Contractor provision of ‘first-level’ support and maintenance activities, which shall be included within the First Level Support, to be provided by, or on behalf of, Iarnród Éireann, but does include provision of technical support services in support of such Iarnród Éireann activities. The Contractor shall ensure that its Contractor Personnel are available to provide such services, which may include, remote assistance in and with the diagnosing of Faults, Iarnród Éireann removal and replacing Trackside assets, Resignalling, change in standards. The Contractor shall seek, in the supply of the Services, to proactively prevent failures affecting the Trackside NRO ETCS Level 1 Trackside System. While Iarnród Éireann shall, as aforesaid, supply First Level Support, the Contractor shall supply all subsequent lines and levels of support services within the Services, as set out in the Scope of Services.

3.3. **Term**

- (a) This MSSC shall take effect on the Execution Date. For the avoidance of doubt, the terms and conditions of this MSSC shall apply from the Execution Date and throughout the Term (save to the extent amended or varied in accordance with the provisions of this Clause 3.3 or as otherwise agreed in writing by the Parties).

- (b) The Contractor shall commence the provision of the Services on the Commencement Date and, unless terminated earlier in accordance with the provisions of Clause 20, shall continue to provide the Services for a period of sixty (60) months thereafter (the "Initial Term"). The Initial Term may be extended by the Parties in successive sixty (60) month periods (each an "Extension Term") in accordance with the following provisions of this Clause 3.3 and up to a maximum of 5 extensions. For avoidance of doubt, the duration of the services are for the Initial Term (5 years) plus a maximum of 5 extensions, with a total coverage period of 30 years.

- (c) At any time between the dates which are:
 - (i) twelve (12) months prior to; and
 - (ii) six (6) months prior to
 the expiry of the Initial Term or any then current Extension Term, Iarnród Éireann may, in its sole discretion, issue a notice to the Contractor indicating that it wishes to engage the Contractor to carry out further services pursuant to this MSSC. Each such notice (an "Extension Notice") shall include a draft scope of services which Iarnród Éireann wishes to have carried out for the Extension Period. Where Iarnród Éireann fails to issue an Extension Notice in accordance with this clause, the Term will expire on the expiry of the Initial Term or the then current Extension Term, as applicable.

- (d) Within one (1) month of the issue of any Extension Notice, at a time mutually convenient to the Parties, the Parties shall meet and discuss in good faith:
 - (i) the desired scope of the services proposed for the relevant Extension Term (the "Extension Services"); and
 - (ii) the amounts payable to the Contractor in respect of the proposed Extension Services (the "Extension Prices");
 (such discussions to be referred to as "Extension Negotiations").

- (e) For the purposes of any Extension Negotiations, the Contractor:
 - (i) shall not refuse to offer (and carry out) any Extension Services proposed by Iarnród Éireann which are consistent with the scope of the Services to be carried out by the Contractor in the Initial Term or in any preceding Extension Term ("Equivalent Services") (other than by agreement with Iarnród Éireann); and
 - (ii) in respect of any Equivalent Services, shall offer Extension Prices which are consistent with the corresponding fees, rates and prices being paid for:
 - a. the Services in the Initial Term; and/or
 - b. corresponding Extension Services in any preceding Extension Term,
 subject in both cases to indexation in accordance with Clause 8.3.

The Contractor shall not otherwise be obliged to offer or agree to carry out Extension Services which are not Equivalent Services but shall use reasonable endeavours to accommodate Iarnród Éireann's requirements in this regard and shall negotiate the provision of such services in good faith with Iarnród Éireann. All Extension Services shall be carried out in accordance with the provisions of this MSSC (subject to such amendment as the Parties may agree in respect of any Extension Term during any Extension Negotiations).

- (f) The Parties shall do all things reasonably within their power to ensure that any Extension Negotiations are concluded within 5 months of the date of the Extension Notice. On conclusion of such negotiations, Iarnród Éireann shall issue a further notice ("Final Extension Notice") detailing the Parties' agreement as to:
 - (i) the Extension Services to be provided by the Contractor in the forthcoming Extension Term;
 - (ii) the Extension Prices payable to the Contractor in respect of those Extension Services; and
 - (iii) any agreed amendments to the terms of the MSSC.
- (g) The Contractor shall respond to a Final Extension Notice by either:
 - (i) identifying any errors or discrepancies therein by notice in writing to Iarnród Éireann; or
 - (ii) returning a copy of the Final Extension Notice, duly signed for and on behalf of the Contractor to indicate its acceptance of its contents;

within one (1) calendar month of receipt of that Final Extension Notice. Where paragraph (g)(i) above applies, the Parties shall meet to resolve the identified issues acting in good faith. Any remaining dispute as to the content of a Final Extension Notice shall be referred by either party to the dispute resolution procedures identified in Clause 24. On resolution of the dispute, the Parties shall both sign copies of the Final Extension Notice, revised consistently with the outcome of any negotiations or dispute resolution process.
- (h) After the issue of any Final Extension Notice by Iarnród Éireann, the Term shall be extended by a further Extension Period of sixty (60) months as and from the date the earlier to occur of:
 - (i) the expiry of the period of one (1) calendar month after the date of issue of a Final Extension Notice in the absence of any response from the Contractor to that notice; or
 - (ii) the date of execution by both parties of the Final Extension Notice; or
 - (iii) the date of final resolution of any dispute as to a Final Extension Notice.

The Extension Services, Extension Prices and any amendments to the MSSC applying during the forthcoming Extension Term shall be those detailed in the signed Final Extension Notice in respect of that Extension Term (or as finally determined in any relevant dispute resolution proceedings conducted pursuant thereto).

- (i) If, after the issue of any Extension Notice by Iarnród Éireann, the Term has not been extended in accordance with Clause 3.3(h) prior to the date of expiry ("Expiry Date") of the Initial Period or then current Extension Period (as applicable), the period between the Expiry Date and the date ultimately determined under Clause 3.3(h) shall be referred to as the "Run Off Period". The Contractor shall continue with the provision of the services applicable immediately prior to the Expiry Date for the duration of any relevant Run Off Period.
- (j) The Initial Term, the Extension Term(s) (if any) and any Run Off Period shall together constitute the "Term" for the purposes of the MSSC.

3.4. **Carrying out the Services**

The Contractor shall carry out the Services and otherwise perform its obligations under this MSSC:

- (a) so as to comply, by way of minimum requirement, at all times with the Performance Regime, where applicable to the relevant elements of the Services;
- (b) so as not to hinder, obstruct or interfere with Iarnród Éireann's operation of the Network or the conduct of any other of Iarnród Éireann's business;
- (c) in such a way as not to cause any interruption to the Network or the conduct of Iarnród Éireann's business operations (other than any pre-agreed and unavoidable interruption which is required in order to perform the Services in a proper and efficient manner);
- (d) in such a way as not to cause any Fault or malfunction in the Trackside NRO ETCS Level 1 Trackside System (or any related or interfacing software or system of Iarnród Éireann);
- (e) in a manner as set out in the Maintenance Plan and the Timetable, which must be agreed with Iarnród Éireann;
- (f) observing the terms of the Iarnród Éireann:
 - (i) Site Regulations;
 - (ii) Health and Safety Policy;
 - (iii) Information Systems Acceptable Usage Policy;
 - (iv) all other Policy Documentation supplied by Iarnród Éireann prior to the Commencement Date; and
 - (v) the Security Requirements;

in each case, as may be revised, updated and/or replaced, whether in whole or in part, by Iarnród Éireann, during the Term (and Iarnród Éireann shall provide the Contractor with notice of any such revision, update and/or replacement to the foregoing, failing which the prior version of each document last notified shall be binding);

- (g) in accordance with all applicable Law; and

- (h) with all reasonable skill and care and in accordance with Good Industry Practice.

3.5. **Safety**

- (a) The Contractor shall perform the Services so as not to put Iarnród Éireann in breach of its applicable safety case in accordance with the Railway Safety Act 2005.
- (b) The Contractor shall comply with the Safety, Health and Welfare at Work (Construction) Regulations 2013 (the “Safety Regulations”) where applicable in the performance of the Services. The Parties shall provide each other with all necessary assistance as they may reasonably require in order to fulfil their respective obligations under the Safety Regulations.
- (c) The Contractor shall comply with all reasonable instructions of Iarnród Éireann Representative necessary for the purpose of enabling Iarnród Éireann to comply with its statutory fire safety compliance obligations.
- (d) The Contractor shall at all times, without additional charge, provide all necessary cooperation and assistance with and to Iarnród Éireann, the police, other emergency services and authorised third parties:
 - (i) for the purpose of the discharge by Iarnród Éireann in relation to any safety or safety related inquiries instigated by any statutory body, including, making its employees available as witnesses and making any records, information and assets available for inspection and as evidence;
 - (ii) in planning for, training for and managing of, any event or situation which may threaten the safety and security of the Network and for any criminal act committed on the Network;

to the extent such inquiry, event or situation pertains to the Services.

4 **PERFORMANCE REGIME**

4.1. The Contractor shall ensure that the Services comply with the Service Levels. The Contractor’s performance of the Services shall be determined and measured in accordance with the provisions of the Performance Regime. If at any time the Contractor fails to achieve one or more Service Levels in any Measurement Period, due to the default of the Contractor, then the Contractor shall, at its sole cost and risk:

- (a) at Iarnród Éireann request, as an adjustment to the Fixed Charge, credit Iarnród Éireann with Service Points, in the amounts and manner set out in the Performance Regime;
- (b) arrange all such additional resources and corrective actions as are necessary to perform the Services in accordance with the Service Levels as early as practicable thereafter, and, in any event, prior to the end of the next following Measurement Period, save only where a longer period is agreed for specific safety reasons, as mutually agreed between the Parties; and
- (c) at the request of Iarnród Éireann, promptly remedy any defect or omission or re-perform any non-conforming Services, as appropriate, giving rise to the failure to

achieve the relevant Service Level, with the intention that the relevant defect, omission or non-conformance shall not reoccur.

4.2. If, notwithstanding any corrective measures or actions taken in accordance with Clause 4.1, the Contractor fails in any material respect to achieve any Service Level, including, but not limited to, where such failure is of a persistent nature, then, such failure may constitute a Serious Service Failure, which failure shall be considered to be a material breach of its obligations and shall entitle Iarnród Éireann to terminate the MSSC in accordance with the provisions of Clause 20.1.

4.3. Service Points due to Iarnród Éireann shall be applied, at the option of Iarnród Éireann, as follows:

- (a) as a credit from the Contractor, to be offset against the next following payment of any Fixed Charge to Contractor; or
- (b) as a credit from the Contractor, to be used to pay for additional Services in the manner and at the times then agreed between the Parties; or
- (c) where the foregoing options are not in Iarnród Éireann's reasonable opinion applicable, then, by way of cash payment, payable within thirty (30) calendar days of Iarnród Éireann written demand;

PROVIDED ALWAYS that for any calendar year during the carrying out of the Services, the total value of any Service Points accruing against the Contractor in accordance with Schedule 3 shall not exceed an amount equal to [100%] of the total amount payable to the Contractor by Iarnród Éireann during that calendar year pursuant to Clause 8.2.

4.4. Where any act of prevention by Iarnród Éireann has impacted the Contractor's achievement of any Services Levels in any Measurement Period, those Service Levels shall be adjusted by Iarnród Éireann's Representative (acting reasonably) to make allowance for the impact of Iarnród Éireann's preventive conduct, and the Contractor's performance as against the relevant Services Levels for the purposes of the application of the Performance Regime shall be assessed accordingly.

4.5. The Parties agree that Service Points are not such as to constitute a penalty on the Contractor and are fair and reasonable in the circumstances and, furthermore, shall not be included within and/or operate as a deductible from or otherwise operate to reduce the value of the Contractor's limitation of liability set out in Clause 18, subject, to the extent applicable, in respect thereof, to established principles prohibiting double recovery in respect of the same loss or damage.

- 4.6. Subject to Clause 4.7 and without prejudice to any right Iarnród Éireann may have to terminate the MSSC under Clause 20, Iarnród Éireann's entitlements in respect of Service Points under this Clause 4 is the Client's sole and exclusive remedy for any failure by the Contractor to ensure the Services comply with the Service Levels.
- 4.7. If Iarnród Éireann's entitlements in respect of Service Points under this Clause 4 is found for any reason to be void, invalid or otherwise inoperative so as to disentitle Iarnród Éireann from claiming such entitlements, Iarnród Éireann shall be entitled to claim against the Contractor for damages at law for failure to ensure the Services comply with the Service Levels, provided that such damages at law shall not accumulate at a rate greater than the rate(s) specified for Service Points pursuant to this Clause 4 nor shall aggregate to an amount which exceeds the liability cap for Service Level breaches specified in Clause 4.3 (unless in any proceedings in respect of this Clause 4 it is the Contractor that has pleaded that Iarnród Éireann's entitlement in respect of Services Points under this Clause 4 is void, invalid, unenforceable or inoperative for any reason, in which case the limitation of this proviso shall not apply).

5 **CHANGE ORDERS**

- 5.1. The Scope of Services may be amended or varied by a Change Order issued in accordance with this Clause 5. No Change Order shall vitiate the MSSC.
- 5.2. The issue of a Change Order may be initiated by Iarnród Éireann or the Contractor in the following circumstances ("**Change Control Events**"):
- (a) Iarnród Éireann requests an amendment to the Scope of Services (or the maintenance regime set out in the relevant maintenance manuals provided by the Contractor pursuant to the D&B Contract and/or this MSSC), including:
 - (i) where there is a need to alter or modify the Trackside NRO ETCS Level 1 Trackside System or the Services to comply with change or revision to Law or Standards; and/or
 - (ii) to address a safety instruction issued by a Regulatory Authority in respect of the Trackside NRO ETCS Level 1 Trackside System or the Services; and/or
 - (iii) to implement an improvement or upgrade, whether by provision of works or services or a New Release, to the Trackside NRO ETCS Level 1 Trackside System or the Services; and/or
 - (iv) where there is a need to alter or modify the Trackside NRO ETCS Level 1 Trackside System or the Services to align with change of infrastructure or signalling asset;
 - (an "**Iarnród Éireann Required Variation**")
 - (b) the Contractor proposes a change to the Scope of Services which results in a reduction in either the cost of the Scope of Services or the cost to Iarnród Éireann of operating or maintaining or otherwise improving the Trackside NRO ETCS Level 1 Trackside System;
 - (c) either Party proposes a change to accommodate a change in a Law or Standard as referred to in Clause 6.2 (b).

- 5.3. Where any Party proposes a Change Order, it shall give full and detailed particulars of the Change Control Event and the proposed scope of the Change Order, including a draft of the Change Order.
- 5.4. Without prejudice to its obligations under Clause 5.3, the Contractor shall include within any proposal by the Contractor for a Change Order and shall provide to Iarnród Éireann within twenty (20) Working Days of receiving any proposal by Iarnród Éireann for a Change Order, the following details (with appropriate supporting calculations, documentation and information):
- (a) the Contractor's proposal for implementing the variation including:
 - (i) the time (including the Contractor's response time, from the time the Change Order is signed by the Parties, to commence implementation of the variation) and the place for carrying out any works or services required in implementing the variation;
 - (ii) any Parts to be replaced;
 - (iii) to the extent that the same is reasonably foreseeable, any effect on the Parts which are held or the Scope of Services and details of any additional Parts which it shall be necessary to hold following the implementation of the variation including, without limitation, the Contractor's proposals concerning the purchase and categorisation (Iarnród Éireann's Parts or Contractor's Parts) of any such additional Parts;
 - (iv) details of any modifications required to be made to any Iarnród Éireann's Parts;
 - (v) details of any approvals that would be required under any Law before the variation could be implemented and the Contractor's proposals for obtaining any such approvals;
 - (vi) details of any modifications to the Manuals and Specifications which are necessary or desirable as a consequence of the implementation of the variation, together with details of the costs associated with the implementation of these changes and the Contractor's proposals as to the carrying out of those changes;
 - (vii) the cost of implementing the proposed variation (but recognising that where it is not possible to identify a fixed cost the Contractor shall provide its best estimate of the cost and its proposed basis for calculating the actual cost which shall then be agreed in accordance with Clause 5.8 before the variation is implemented); and
 - (viii) any costs and/or sums to be paid to and/or recovered by Iarnród Éireann;
 - (b) whether any changes to the terms of this MSSC are necessary to give effect to the Change Order; and
 - (c) any estimated increase or decrease in the Fixed Charge;

INCLUDING, in each case, where relevant, full details of its proposed plan for addressing the proposed Change Order.

5.5. As soon as practicable after providing information required under Clause 5.4 the Contractor shall:

- (a) provide evidence that the Contractor is using reasonable endeavours to minimise any increase in costs or additional time required and to maximise any reduction in such costs;
- (b) demonstrate how any expenditure to be incurred is being measured in a cost effective manner; and
- (c) to the extent that it is able to do so, provide details of any anticipated savings in maintenance or operating costs consequent upon the Change Control Event.

5.6. Either Party may require the other to provide such further information which is relevant to the proposed Change Order as the requesting Party may reasonably require. Such further information shall be provided as soon as reasonably practicable but in any event within twenty (20) calendar days of a request in writing for same. It is understood between the Parties that any modification or variation to this MSSC or the Services by way of a Change Order shall be consistent with and in accordance with Article 89 of Directive 2014/25/EU.

5.7. If the Parties are unable to agree:

- (a) whether a Change Control Event has occurred and/or
- (b) the terms of any Change Order,

within a period of two (2) months after the proposal for the Change Order submitted by either Party or, where either Party has requested additional information under Clause 5.6, two (2) months after such information is provided by such Party, the matter may be referred by either Party for resolution under the Dispute Resolution Procedure.

5.8. As soon as the terms of a Change Order have been agreed between the Parties, or determined under the Dispute Resolution Procedure, such Change Order shall be drawn up by the Party that initiated the proposal for such Change Order and be signed by the Contractor and Iarnród Éireann. Such signature by both Parties shall constitute issuance of the Change Order for the purposes of this MSSC.

5.9. Iarnród Éireann may require the Contractor to provide relevant information on the estimate of the costs or time impact of Iarnród Éireann Required Variation to the extent that the Contractor is reasonably able to do so as soon and reasonably practicable but in any event within twenty (20) calendar days of Iarnród Éireann's request.

5.10. In the event that Iarnród Éireann does not agree with the estimate proposed by the Contractor, the Contractor and Iarnród Éireann shall seek to agree the costs of the Iarnród Éireann Required Variation, each Party acting in good faith. If the Parties are unable to agree the cost of Iarnród Éireann Required Variation, then the matter shall be referred for resolution under the Dispute Resolution Procedure. Pending a determination of the costs of such Iarnród Éireann Required Variation, the Contractor shall perform the work specified in Iarnród Éireann Required Variation in accordance with the terms thereof, and Iarnród Éireann

shall pay the Contractor an amount equal to Iarnród Éireann's estimate of the cost of Iarnród Éireann Required Variation, as applicable.

- 5.11. The Contractor or Iarnród Éireann (as applicable) shall implement and perform all of its obligations under this MSSC as varied by a Change Order as soon as such Change Order has been issued pursuant to the terms of this MSSC, provided that, the Contractor shall not be obliged to implement any Change Order other than an Iarnród Éireann Required Variation before the terms of such order have been agreed by the Parties or resolved pursuant to the Dispute Resolution Procedure.

6 CHANGE IN LAW

- 6.1. The Contractor shall, throughout the Term:

- (a) make changes to the Services (including to the Contractors Standard Software, Modified Software and Custom Software); and
- (b) procure from third party licensors the making of changes to the Third Party Software;

in all cases, to take account of and remain compliant with Law (the "**Statutory Requirements**") including any change thereto (a "**Statutory Requirements Change**"). Accordingly, these changes will be implemented within a reasonable timeframe as agreed between the Parties.

- 6.2. In the event of any Statutory Requirements Change, subject to Clause 6.4, the Contractor shall be entitled to raise a proposal to vary the Fixed Charge payable to the Contractor as a result of such Statutory Requirements Change, which shall be dealt with by way of a Change Order.
- 6.3. In the event that Contractor does not fulfil its responsibilities and obligations set out in this Clause 6 in respect of Statutory Requirements Change and Iarnród Éireann thereby incurs costs to which it would not otherwise be liable due to any relevant Law, or any relevant order, regulation or bye-law having the force of the Law, then, the amount of such costs shall be reimbursed by Contractor to Iarnród Éireann, provided that, Iarnród Éireann has made all reasonable efforts to mitigate such costs.
- 6.4. Statutory Requirements Change shall not apply to changes in Contractor tax status or variations to the tax, of whatever nature, payable by Contractor, which shall be matters entirely within the responsibility of Contractor (provided always that it shall apply in respect of a Statutory Requirements Change to the extent that the change causes an increase in the cost of providing the Services).

7 SUB-CONTRACTING AND ASSIGNMENT

- 7.1. This MSSC is personal to the Contractor. Subject to Clause 7.2, the Contractor shall not sub-contract, sub-licence, or otherwise procure the performance of the Services by and from any third party, whether in whole or in part, without the prior written consent of Iarnród Éireann.
- 7.2. Notwithstanding Clause 7, Iarnród Éireann hereby consents to the Contractor's sub-contracting of certain of its obligations, provided that, the Contractor shall have obtained Iarnród Éireann's prior written consent, not to be unreasonably withheld, to the identity of the Sub-Contractor and the scope and duration of the sub-contracting. The Contractor shall remain primarily responsible for the acts and omissions of its Sub-Contractors, as though they

were its own. The contract between the Contractor and each Sub-Contractor shall oblige the Sub-Contractor to abide by terms equivalent to the applicable terms and conditions of this MSSC, save as otherwise agreed.

7.3. Not Used

7.4. The Contractor shall not otherwise assign, novate, sub-contract, sub-licence, or otherwise transfer this MSSC, or any part thereof, to any third party, without the prior written consent of Iarnród Éireann.

7.5. Iarnród Éireann and CIE may assign, novate, or otherwise transfer this MSSC, or any part thereof, to a third party, upon prior written notice to the Contractor.

8 IARNRÓD ÉIREANN'S OBLIGATIONS

8.1. Access

(a) Whilst the Contractor (or any of its employees, agents, consultants, contractors or licensees) or its Sub-Contractors are on premises which are owned or occupied by Iarnród Éireann and/or CIE, including, the Site, the Contractor shall comply, and procure compliance by them, with:

- (i) all reasonable instructions of Iarnród Éireann;
- (ii) all relevant Policy Documentation, including guidelines and procedures, relating to such premises;
- (iii) the Security Requirements; and
- (iv) all applicable Laws and relevant Standards.

(b) The Contractor shall not in carrying out the Services (including while present on any property of Iarnród Éireann and/or CIE and/or to the Network or any part thereof):

- (i) cause any disease in, the death of or personal injury to any person;
- (ii) cause any damage, destruction or loss to any property owned by Iarnród Éireann or CIE or any third party;
- (iii) carry out any alterations to any property owned by Iarnród Éireann or CIE without the prior written permission of Iarnród Éireann;

and shall indemnify Iarnród Éireann in respect of any cost, loss or damage suffered or sustained by Iarnród Éireann arising from any breach by the Contractor of this clause (provided always that the Contractor's liability under this clause shall be reduced proportionately to the extent that Iarnród Éireann's negligence has caused or contributed to such cost, loss or damage).

(c) Where the Contractor requires access to the property of Iarnród Éireann and/or CIE and/or to the Network for the purposes of carrying out the Services, it shall make written request to Iarnród Éireann for such access identifying the reason for the requirement and the date and proposed duration of the required access, this request for access should be submitted to IÉ 8 weeks prior to the access date.

Subject to Clause (d) below, Iarnród Éireann's approval of any such request by the Contractor shall not be unreasonably withheld or delayed by Iarnród Éireann.

- (d) Other than in relation to the provision of On-Site Technical Support Services, the Parties do not envisage, as of the Execution Date, that the Contractor shall require access to Iarnród Éireann and/or CIE property and/or the Network to perform the Services. Accordingly, any access requests shall be exceptional and shall require the prior consent of the Iarnród Éireann Representative, together with their processing and approval by Iarnród Éireann in accordance with the published access arrangement, with any access required to the Network to be during scheduled engineering hours.

8.2. Price and Payment

- (a) In consideration of the Contractor providing the Services in respect of the Trackside NRO ETCS Level 1 Trackside System in accordance with the terms of this MSSC, Iarnród Éireann shall, in respect of each Payment Period during the Term pay the Contractor:

- (i) the total of the Fixed Charges in respect of the Services referred to in Clause 3.1(a) applicable for the relevant Year of the Term divided by thirteen (13); and
- (ii) in respect of the Services referred to in Clause 3.1(b), the amounts calculated by application of the Schedule of Rates for the resources deployed by the Contractor in providing those Services during the relevant Payment Period;

as set out in Schedule 8 as indexed (where applicable) pursuant to Clause 8.3.

- (b) On or before each Payment Claim Date, the Contractor shall submit a VAT invoice for the amounts due to it as set out in Clause 8.2(a) for the relevant Payment Period. Each invoice shall quote the applicable Iarnród Éireann purchase order number. (provided always that Iarnród Éireann acknowledges that the issue of a purchase order number is an internal administrative Iarnród Éireann matter only and agrees that it shall not delay in the issue of purchase order numbers in respect of invoices properly due and payable under this MSSC).
- (c) Iarnród Éireann shall pay the Contractor all amounts due pursuant to each invoice issued by the Contractor in accordance with Clause 8.2(b) within forty two (42) days of the later of:
 - (i) the date of the Contractor's submission of the relevant invoice in respect of the relevant Payment Period; and
 - (ii) the applicable Payment Claim Date;

together with any applicable VAT in respect of the invoice (provided always that the Contractor shall, in the event of a repayment of Fixed Charges, promptly provide Iarnród Éireann with a VAT credit note).

- (d) All amounts payable by Iarnród Éireann to the Contractor under this MSSC are payable in the euro (€).
- (e) Reference to the Contractor repayment of Fixed Charges paid pursuant to this MSSC, or calculation of Contractor liability hereunder by reference to Fixed Charges paid and/or payable, shall mean, in each case, the relevant Fixed Charges together with VAT and any expenses paid in connection therewith, which shall be repaid to Iarnród Éireann, as set out in the applicable Clause.
- (f) All amounts payable to the Contractor under this MSSC shall, where and to the extent required by Law, be made free and clear of and without deduction for or on account of taxes, save where Iarnród Éireann is required to make such payment subject to the deduction or withholding of tax, required by Law or practice of the Revenue Commissioners. Where the foregoing applies or is likely to apply during the Term in respect of one or more payments of amounts due under this MSSC, then the Parties shall discuss the matter in a good faith and expeditious manner, attempting to resolve the matter to the reasonable satisfaction of both Parties.
- (g) Payment shall be made in accordance with the European Communities (Late Payment in Commercial Transactions) Regulations 2012 (as amended), including the section referring to the application of interest to late payments, save that Iarnród Éireann may suspend payment of disputed invoices (or part thereof) subject to a bona fide good faith dispute between the Parties, for the duration of the dispute. Iarnród Éireann shall pay the part thereof not in dispute in accordance with this Clause 24 and shall, within a reasonable period, provide the Contractor with written notice of any dispute. Both Parties shall apply the Dispute Resolution Procedure in order to resolve such dispute. Following resolution of the dispute the Contractor shall either withdraw the disputed invoice or obtain payment of the sums suspended by Iarnród Éireann, in whole or in part, as agreed between the Parties.
- (h) The Contractor shall obtain and provide to Iarnród Éireann within thirty (30) calendar days of the date of this MSSC a current tax clearance certificate from the Revenue Commissioners. The Contractor shall continue to hold, in good standing, current issues of all such certificates for the Term and shall provide a copy thereof to Iarnród Éireann promptly upon request, both during and after the Term.
- (i) Where applicable, the Contractor shall promptly comply with all requirements under Chapter 18, Part 2 of the Taxes Consolidation Act 1997 and shall provide all documents and confirmations as may be required in connection therewith.
- (j) In the event that the Contractor, in accordance with the terms of this MSSC, enters into a supply contract or a sub-contract with a third party in respect of the Services, the Contractor shall ensure that all sums due thereunder shall be paid by the due date for payment set out therein.
- (k) The Contractor shall operate all payroll taxes required under applicable Law in respect of any of its employees engaged in the provision of the Services and Iarnród Éireann shall have no obligations in this regard in respect of those employees.
- (l) Save as expressly provided otherwise in this Clause 8.2, each Party shall be solely responsible for all taxes assessed on it in connection with the preparation,

negotiation, execution and performance of this MSSC and no party shall be liable to the other for any taxes assessed on the income, profit or gains of any other party.

8.3. Indexation

The Fixed Charges and the rates and prices in the Schedules of Rates in Schedule 09 (the "Prices") for each of:

- (a) Years one (1) to three (3) shall be those Prices set out for each such Year in Schedule 09; and
- (b) Years four (4) to thirty (30), shall be those Prices applicable to Year three (3) in Schedule 09

PROVIDED ALWAYS that all Prices shall be subject to indexation in accordance with the following formula (to be applied to all relevant Prices on the first day of each Year of the Term (each such date a "Valuation Date")):

$$P_y = P_x \times (HICP_y)/(HICP_x)$$

where:

P_y = the Price to be applied to the yearly period following the relevant Valuation Date;

P_x = the relevant Price as identified in Schedule 09;

$HICP_y$ = the HCIP index applicable as at the relevant Valuation Date;

$HICP_x$ = the HCIP index as applicable as at the date of the Contractor's tender in respect of the D&B Contract

and where HCIP is the latest published Harmonised Indices of Consumer Prices (HICP) sourced from the European Commission Eurostat Table code:tec00118 or its replacement.

9 INTELLECTUAL PROPERTY RIGHTS

9.1. Ownership of IPR

- (a) All IPR in respect of any documents or things produced by or on behalf of the Contractor pursuant to or for the purposes of the Services and/or the MSS Activities (the "MSS IPR") vests in the Contractor.
- (b) The Contractor shall not use any Iarnród Éireann and/or CIÉ IPR, including, without limitation, any Iarnród Éireann and/or CIÉ registered or unregistered trade marks, save with the prior written consent of Iarnród Éireann and/or CIÉ as appropriate.

9.2. License

- (a) The Contractor hereby grants to Iarnród Éireann a nonexclusive, perpetual, irrevocable, non-transferable, fully paid up, royalty-free licence to use the MSS IPR for any Permitted Use, which license shall include the right to grant a sub-license to others to use such rights on behalf of Iarnród Éireann.

- (b) The rights granted to Iarnród Éireann by Clause 9.2(a) do not include a right to manufacture Parts for sale.
- (c) The right to sub-license granted to Iarnród Éireann by Clause 9.2(a) is limited as follows:
 - (i) Iarnród Éireann may not sub-license those rights to third parties for reasons other than as required for a Permitted Use on behalf of Iarnród Éireann; and
 - (ii) Iarnród Éireann may only sub-license those rights to a Competitor where:
 - a. the sub-license is to enable the Trackside NRO ETCS Level 1 Trackside System to be interfaced with equipment and/or systems which form part of the Trackside NRO ETCS Level 1 Trackside System; or
 - b. the sub-license is reasonably required to carry out works or services for Iarnród Éireann in respect of the Trackside NRO ETCS Level 1 Trackside System (or any part of it) to maintain its proper functioning;and
 - c. Iarnród Éireann has invited the Contractor to tender a quotation to carry out the relevant services requiring the sub-license and the Contractor has failed to provide a price for these services which is consistent with the rates and prices implicit in this agreement in respect of corresponding services (or reasonable rates in the absence of any corresponding services under this agreement);

or otherwise where Iarnród Éireann has obtained the prior written consent of the Contractor (such consent not to be unreasonably withheld or delayed by the Contractor);
- (d) If Iarnród Éireann should sub-license rights granted by Clause 9.2(a) to a Competitor, then Iarnród Éireann shall:
 - (i) restrict the access of such Competitor to such materials and tools as are necessary in order for the Competitor to be able to undertake the work required to enable the Trackside NRO ETCS Level 1 Trackside System to be interfaced with the relevant equipment and/or systems.
 - (ii) ensure that each such entity enters into a confidentiality undertaking in favour of Iarnród Éireann in substantially similar terms to those in respect of the obligations in respect of confidential information in this MSSC.

9.3. Escrow

- (a) Pursuant to “Schedule B Option Z clauses - Appendix 6” of the D&B Contract, an Escrow facility is to be established in respect of certain software to be deployed in respect of the works under that contract in accordance with the terms of the Escrow Agreement. For the purposes of the MSSC, the Contractor shall deposit in that Escrow facility all Source Code Materials in respect of the MSS IPR provided by (or on behalf of) the Contractor in the carrying out of the Services. All such materials

shall be deposited or lodged by the Contractor within the Escrow facility within thirty (30) calendar days of their release date.

- (b) The Contractor shall be responsible for creating and maintaining the Escrow facility and Iarnród Éireann will be responsible for the cost of the release. Escrow materials shall be updated not less than every six (6) months.

9.4. Iarnród Éireann Right To Use Documentation

- (a) Without prejudice to Clause 9.2(a), Iarnród Éireann may use the MSS IPR delivered to it from time to time under this MSSC for any Permitted Use and Iarnród Éireann shall comply with its confidentiality obligations in relation to such use.
- (b) The Contractor shall produce, or shall procure that any company in the Contractor's Group produces, and shall use all reasonable endeavours to procure that each of its Sub-Contractors produces, documentation in a format agreed between the Contractor's Representative and the Iarnród Éireann Representative or otherwise reasonably directed by Iarnród Éireann.
- (c) The Contractor shall execute, shall procure that any company in the Contractor's Group shall execute, and shall use all reasonable endeavours to procure that any Sub-Contractor other than a company in the Contractor's Group shall execute, such further documents, and do such other things, as Iarnród Éireann may reasonably request.
- (d) Notwithstanding the provisions of any other Clause, the Parties' rights and obligations under this Clause 0 shall survive the expiry or early termination of this MSSC, howsoever arising.

9.5. IPR Indemnity

- (a) The Contractor indemnifies Iarnród Éireann and CIE against all loss, damage, claims, liabilities, fees, costs and expenses ("Loss") arising out of any third party action or proceedings based on a claim that the use of MSS IPR by:

- (i) the Contractor in carrying out the Services; or
- (ii) Iarnród Éireann within the terms of the license granted under Clause 9.2(a)

infringes the IPR of the third party (including any such Loss arising pursuant to an injunction restraining such use of the MSS IPR):

- (b) Iarnród Éireann gives to the Contractor prompt notice of any claim for infringement which may give rise to a claim under the indemnity at Clause 9.5(a). Iarnród Éireann allows the Contractor to take over and retain the conduct of the defence of any claim referred to in Clause 9.5(a) and to deal with such claim as the Contractor sees fit subject to the Contractor:
 - (i) keeping Iarnród Éireann and CIE fully and effectively indemnified as to costs including its own reasonable costs;
 - (ii) conducting all such claims in a proper expeditious and business-like manner;

- (iii) keeping Iarnród Éireann informed of the progress of the handling of the claim; and
- (iv) using best endeavours to resolve the claim including where appropriate by obtaining the right for Iarnród Éireann to continue to use the relevant IPR until such time that an alternative non-infringing right with no reduction in the functionality or performance of the relevant material and/or the works can be used instead or that a licence is granted to Iarnród Éireann.

10 CONFIDENTIAL INFORMATION

10.1. **In the course of carrying out their respective obligations under this contract, each Party and CIE may have access to and/or otherwise become aware of the Confidential Information of the other Party and/or CIE. The Parties and CIE agree that any Confidential Information obtained from, or relating to, the other Party or CIE and/or their respective Affiliates, servants or agents:**

- (a) remains the property of such Party or CIE (as applicable);
- (b) is treated as confidential;
- (c) is not used or disclosed otherwise than to the Party's or CIE's employees, agents, consultants or subcontractors and then only to the extent necessary for the performance of this contract (and in disclosing Confidential Information to such third parties in these circumstances, the discloser of the information notifies the recipient of its status as Confidential Information and takes all reasonable precautions to ensure that such third parties are aware of and comply with obligations of confidentiality to the discloser of the information which are no less onerous than those set out in this Clause 10).

10.2. **The provisions of Clause 10.1 do not apply to Confidential Information which:**

- (a) is in or becomes part of the public domain (otherwise than by breach of this contract);
- (b) was in the lawful possession of the receiver of the information prior to disclosure under this contract and was not unlawfully obtained, either directly or indirectly;
- (c) is lawfully disclosed to the receiver of the information by a third party without restriction on disclosure; or which is independently developed by the receiver of the information without dependence on, or reference to, such Confidential Information;
- (d) is required to be disclosed by law or final mandatory order of a court or at the direction of a Regulator or other competent authority;
- (e) is required to be disclosed to the Parties' and/or to CIE's auditors or professional advisors, provided that such disclosure is only to the extent necessary for such advisors to carry out their professional duties and upon conditions of confidentiality, no less onerous than set out in this Clause 10; and
- (f) is released from the provisions of this Clause 10, by the prior written consent of the owner of the Confidential Information;

and, in addition, the Parties agree that the Client and CIE are entitled to share any Confidential Information of the Contractor's with:

- (g) each other; and
- (h) any Affiliates of the Contractor.

10.3. The provisions of this Clause 10 continue in force for a period of sixty (60) calendar months following:

- (a) the expiry of the Term, or
- (b) the date of termination of the contract, if such date is earlier than the date in paragraph (a).

11 EMPLOYMENT MATTERS

11.1. The Contractor shall ensure that each of the Contractor Personnel engaged in the Scope of Services is appropriately qualified and competent, including, Technically Competent. Iarnród Éireann may request that a member of Contractor Personnel is removed from his role in respect of the Scope of Services where Iarnród Éireann reasonably considers that such individual is not appropriately qualified and competent.

11.2. The Contractor acknowledges the importance of the Contractor Personnel responsible for the provision of the Services and agrees:

- (a) that the members of the team as at the Commencement Date and for the first two years thereafter, shall include persons who were involved in designing the Trackside NRO ETCS Level 1 Trackside System, including in developing the coding for the Software comprised in it, and have an in depth understanding of the Trackside NRO ETCS Level 1 Trackside System and its component parts (including the Software);
- (b) not to change the identity of such persons without first obtaining Iarnród Éireann's prior written consent (not to be unreasonably withheld or delayed where the Contractor has put forward appropriate replacement(s) who are suitably qualified and have an in depth understanding of the Trackside NRO ETCS Level 1 Trackside System and its component parts (including the Software));
- (c) to put in place adequate contingency arrangements to deal with planned and unplanned temporary absences of such persons; and
- (d) to provide Iarnród Éireann with such information as it may reasonably request concerning the qualification and experience of such persons and any proposed temporary or permanent replacement(s).

11.3. The Iarnród Éireann Representative shall be at liberty to object to and require the Contractor to remove or cause to be removed from the Scope of Services any person employed and/or engaged thereon who misconducts himself or is incompetent or negligent in the performance of his duties or fails to comply with any particular provisions with regard to safety which may be set out in this MSSC, or persists in any conduct which is prejudicial to safety or health and such person shall not be employed and/or engaged again in connection with this MSSC without the prior written permission of Iarnród Éireann's Representative.

- 11.4. In the performance of this MSSC, the Contractor shall be an independent contractor and shall not act as nor be an agent or employee of Iarnród Éireann, and shall not hold himself out as such. The Contractor assumes full responsibility for the action and/or omissions of Contractor Personnel. As employer and/or engager of the Contractor Personnel, the Contractor shall be solely responsible for the supervision, co-ordination and integration, daily directions, control, payment and other matters relating to their employment and/or engagement. The Contractor warrants and represents that all Contractor Personnel engaged in the provision of the Scope of Services in Ireland shall be legally entitled to work in Ireland (whether by reason of EEA citizenship, possession of an employment permit or otherwise) and that the Contractor shall fully comply with its statutory obligations in respect of the safety, health and welfare and terms and conditions of employment and/or engagement of such Contractor Personnel.
- 11.5. The Contractor hereby acknowledges and agrees that it is the employer of all Contractor Personnel, who are employed by it and further that it has contracted in respect of those Contractor Personnel who are not its employees but engaged by it as independent contractors (including employees of such independent contractors) or agency workers, and nothing in this MSSC or its performance, variation, amendment, termination or expiry, shall constitute or result in there being a relationship of employment between Iarnród Éireann and the Contractor or between Iarnród Éireann and any of the Contractor Personnel. The Contractor shall be solely and exclusively liable for all and any costs (including legal costs), claims, losses, liabilities and expenses arising from the following and shall indemnify and hold harmless Iarnród Éireann and keep Iarnród Éireann indemnified and held harmless and shall pay forthwith Iarnród Éireann on demand all and any such costs, claims, losses, liabilities and expenses which Iarnród Éireann may incur arising from or due to:
- (a) all claims (including but not limited to a claim for income tax, Universal Social Charge, PRSI, VAT (at the applicable rate) and any interest, duties and penalties thereon) which may be made against Iarnród Éireann by the Revenue Commissioners or the Department of Social Protection or other lawful authority for the foregoing liabilities arising from the provision of the Services;
 - (b) any order or award by any tribunal, court, quasi-judicial body or third party arising out of a determination that any of the Contractor Personnel are employees of Iarnród Éireann howsoever and whenever arising whether pursuant to Section 13 of the Unfair Dismissals (Amendment) Act, 1993, the Transfer Regulations or otherwise;
 - (c) any claims in respect of the termination of employment of any of the Contractor Personnel by the Contractor, including, but not limited to, claims for unfair dismissal, wrongful dismissal, notice redundancy or any claims for termination payments;
 - (d) any claim for redress in respect of unlawful discrimination directed to the Workplace Relations Commission, Labour Court and/or Circuit Court arising from alleged contravention of the Employment Equality Acts, 1998 to 2015, the Equal Status Acts 2000 to 2015, or any statutory amendment or reenactment thereof, by any of the Contractor Personnel against Iarnród Éireann, save to the extent that the claim relates to the acts or omissions of Iarnród Éireann and/or its employees; and

- (e) any claim (statutory, contractual or otherwise) made by or on behalf of the Contractor Personnel, which relates to any act or omission of the Contractor in connection with their employment or engagement.
- 11.6. It is the intention of the Parties that no Contractor Personnel shall transfer employment to Iarnród Éireann or to any new or replacement service provider on the commencement, termination or expiration of this MSSC, howsoever or whenever arising. The Contractor shall fully indemnify and hold harmless Iarnród Éireann and any new or replacement service provider and keep Iarnród Éireann and any such new or replacement service provider indemnified and held harmless for and against each and every action, proceeding, liability, cost, claim, loss, expense (including but not limited to legal fees) and demand due to, arising out of or in connection with, a dismissal by Iarnród Éireann or any new or replacement service provider of any person whose employment transfers, or is alleged to transfer, to Iarnród Éireann or such new or replacement service provider, as a consequence of the Transfer Regulations applying or being asserted to apply or otherwise upon termination, variation, amendment or other alteration of this MSSC howsoever or whenever arising.
- 11.7. The Contractor shall indemnify and hold harmless Iarnród Éireann and any replacement service provider for and against any continuing costs incurred by Iarnród Éireann or any replacement service provider as a consequence of a determination, decision, recommendation, order or judgment by a Court or the Workplace Relations Commission or other adjudicating body whereby Iarnród Éireann or any replacement service provider is required to employ or reinstate any Contractor Personnel or any other person employed or engaged by the Contractor. The Parties agree that the indemnification contained in this Clause 11.7 shall not apply unless Iarnród Éireann or the replacement service provider gives notice to terminate the relevant Contractor Personnel or other person's employment within forty five (45) days of the transfer of employment or the relevant order/direction confirming the transfer of employment to Iarnród Éireann or the replacement service provider.
- 11.8. Without prejudice to the foregoing, the Parties agree that in the event the Transfer Regulations apply on the termination or expiration of this MSSC, howsoever or whenever arising, the following provisions shall apply;
 - (a) the Parties shall comply with their respective obligations under the Transfer Regulations;
 - (b) the Contractor shall indemnify and hold harmless keep indemnified and held harmless Iarnród Éireann and any new or replacement service provider (as the case may be) against all costs, claims, losses, liabilities and expenses which Iarnród Éireann and/or any new or replacement service provider may incur arising out of or in connection with any claim by or on behalf of an employee or purported employee of Iarnród Éireann or any new or replacement service provider which relates to their employment (or their termination thereof) prior to the transfer date under the Transfer Regulations;
 - (c) the Contractor shall indemnify and hold harmless and keep indemnified and held harmless Iarnród Éireann and any new or replacement service provider (as the case may be) against all costs, claims, losses, liabilities and expenses which Iarnród Éireann and any new or replacement service provider may incur in connection with or as a result of any failure by the Contractor to comply with its obligations under

the Transfer Regulations, save where such failure arises from the failure of Iarnród Éireann or any new or replacement service provider to comply with its or their obligations under the Transfer Regulations; and

- (d) the Contractor shall, if required by Iarnród Éireann or any new or replacement service provider, provide Iarnród Éireann or any new or replacement service provider with details of the identity (to the extent lawfully permitted and subject to the requirements of applicable Data Protection Legislation) and terms of employment of all the Contractor's employees including, but not limited, to that Information prescribed by Section 21 of the Employees (Provision of Information and Consultation) Act 2006, who are then employed in the provision of the Services in order to facilitate Iarnród Éireann or any new or replacement service provider's compliance with the provisions of the Transfer Regulations.

- 11.9. Iarnród Éireann holds the benefit of the indemnities in this Clause 11 for itself and in trust for any new or replacement service provider and the Contractor agrees that when requested to do so by Iarnród Éireann it shall execute indemnities in similar terms in favour of any new or replacement service provider.
- 11.10. In circumstances where the Transfer Regulations do not apply on the termination or expiration of this MSSC, howsoever or whenever arising, the Contractor shall be responsible for the redeployment or termination of employment of all employees who are then employed in the provision of the Scope of Services and shall indemnify and hold harmless Iarnród Éireann in respect of any costs, liabilities, claims and expenses which Iarnród Éireann may incur arising out of or in connection with such redeployment or termination of employment by the Contractor of any employee who is then employed by the Contractor.
- 11.11. During the Term and for a period of eleven (11) Months thereafter, neither Party shall, without the prior written consent of the other Party, solicit, nor employ, in any capacity, any of the personnel of the other Party assigned to the management, provision or receipt of the Services. The Party in breach of this Clause 11.11 shall pay to the other Party, upon written demand, by way of liquidated damages and not by way of penalty, a sum equal to one hundred and fifty per cent (150%) of the gross annual salary paid to such person in the immediately preceding six (6) Months. The foregoing shall not apply in respect of job vacancies advertised openly in the national press or on a market-leading recruitment web site, in a suitably prominent manner.
- 11.12. Each Party shall use its reasonable commercial endeavours to ensure that its Key Personnel are not removed or replaced during their period of assignment to the supply and provision of the Services, as set out in the Scope of Services or agreed by the Parties pursuant to the Governance and Contract Management Procedures. However, in the event that any Key Personnel of the Contractor become unavailable through unavoidable termination of employment or other cause, then, the Contractor shall, as soon as reasonably possible in the circumstances, advise Iarnród Éireann of the future unavailability of such person, and shall, upon giving reasonable notice in writing to Iarnród Éireann replace such individual with another individual of no less ability, training and qualifications.
- 11.13. During the Term, the Parties shall agree suitable deletions, alterations, or revisions, to the list of Key Personnel, which shall be agreed, either, by written agreement of the Parties' Representatives or at the Parties' regular Review Meetings.

- 11.14. Iarnród Éireann may reasonably object to the continued allocation of named Contractor Personnel to the supply and provision of the Services, which objection shall be made in good faith and for service delivery and/or performance related reasons, which shall not be frivolous or vexatious, whether in writing or at the next following Review Meeting. Following receipt of an Iarnród Éireann objection, the Parties shall discuss in good faith the reallocation of the Contractor resources in order to accommodate the Iarnród Éireann objection. The Contractor shall promptly, using good faith commercial endeavours, insofar as reasonably possible in the circumstances, following such good faith discussions, replace such person with another individual of no less ability, training and qualifications.
- 11.15. The Contractor shall be solely responsible for ensuring, in so far as reasonably possible, a continuity of Contractor Personnel allocated to the supply and provision of the Services.

12 MINIMUM WAGE AND LIVING WAGE IN IRELAND

The Contractor shall ensure that it complies with the provisions of the Minimum Wage Act 2000 (as amended from time to time) in respect of Contractor Personnel. If applicable, the Contractor shall comply with the minimum rate of pay obligations as set out in any collective agreement, registered employment agreement and/or sectoral employment agreement which may, from time to time, apply to Contractor Personnel.

13 MAINTENANCE OF RECORDS

13.1. The Contractor shall ensure that:

- (a) orderly auditable records of the progress and monitoring of the Trackside NRO ETCS Level 1 Trackside System during any enhancement, development or other change made pursuant to the Services, including pursuant to a Maintenance Release and/or New Release, are maintained for the duration of the Term and provide for regular verification and testing at each stage of the design process;
- (b) the documentation for any enhancement, development or other change made pursuant to the Services, as set out in sub-clause (a), is such as to enable an appropriately qualified independent auditor (who was not involved in the original design) to relate the Trackside NRO ETCS Level 1 Trackside System to the performance of the relevant equipment under normal and fault conditions and to enable an appropriately skilled person to manage the Trackside NRO ETCS Level 1 Trackside System without the assistance of the Contractor or any of its Sub-Contractors;
- (c) any enhancement, development or other change made pursuant to the Services, as set out in sub-clause (a), are designed, developed and documented following an industry recognised Standard, using recognised quality control methods; and
- (d) any enhancement, development or other change made pursuant to the Services, as set out in sub-clause (a), shall be carried out so that the Trackside NRO ETCS Level 1 Trackside System is suitable for its original lifespan;

AND, Iarnród Éireann acknowledges that for the purposes of this Clause 13.1 the standard of records for Software which is not critical or safety-related need not be as high as shall be required for Software which is of a critical or safety-related nature.

13.2. At all times during the Term the Contractor shall:

- (a) retain:
 - (i) “as-made” copies, in machine readable form, of the final structure of the design and data, and of the intermediate stages leading to it (i.e. source and standards); and
 - (ii) usable copies of any ancillary standards and/ or designs used to generate the final design and data (such as generic designs, inputs, standards, etc.)

AND in each case updated from time to time to incorporate all modifications carried out by the Contractor, IÉ or any Sub-Contractor;

- (b) keep copies of the materials referred to in Clause 13.2(a) in the Technical Library relating to the design and/ or data (excluding the source data relating to design and data production which shall be dealt with in accordance with the Escrow arrangements set out in Clause 9.3), provided that, the final design and data includes all design and data files- and application data and Background Tools related and/or associated with the design and data and such Technical Information relating to the Contractor Hardware and shall keep such copies updated to ensure readability in line with current industry practice so that a skilled person can access the files and maintain it as may be reasonably necessary and to the extent allowed under the terms of this MSSC;
- (c) retain the Software designed by or for the Contractor and implement and document changes to the same to implement Modifications, using an effective change control procedure.

14 DATA

The following provisions of the D&B Contract:

- (a) Clause Z7 (Data Protection); and
- (b) Appendix 8 (Data Categories)

shall apply to the provision of the Services under this MSSC *mutatis mutandis* with references to:

- (i) the “Client” being deemed a reference to Iarnród Éireann under the MSSC;
- (ii) the “Contractor” being deemed a reference to the Contractor under the MSSC;
- (iii) the “contract” in those provisions being deemed a reference to the MSSC.

15 INSPECTION AND AUDIT

15.1. Iarnród Éireann and their authorised representatives may from time to time audit or check any and all information regarding any matter related to the performance of or compliance with this MSSC, including without limitation, any aspect of the Contractor’s operations, method statements, costs and expenses, sub-contracts, financial arrangements, technical records or any document referred to therein or relating thereto. Iarnród Éireann’s rights

pursuant to this Clause 15.1 include the right to audit and check and to take copies of and extracts from any document or record of the Contractor or its Sub-Contractors (including, without limitation the Minimum Records) where such material evidences a breach of this MSSC by the Contractor. For the avoidance of doubt, all information accessed by Iarnród Éireann in the course of any such audits shall be treated as Confidential Information by Iarnród Éireann.

15.2. The Contractor shall promptly on request provide (and shall procure that its SubContractors provide) all reasonable co-operation in relation to any such audit or check including to the extent reasonably possible in each particular circumstance by:

- (a) granting or procuring the grant of access to any premises used in the Contractor's performance of this MSSC, whether the Contractor's own premises or otherwise;
- (b) granting or procuring the grant of access to any equipment (including all computer hardware and software and databases) used (whether exclusively or non-exclusively) in the performance of the Contractor's obligations under this MSSC, wherever situated and whether the Contractor's own equipment or otherwise;
- (c) making any contracts and other documents and records required to be maintained under this MSSC (whether exclusively or non-exclusively) available for inspection;
- (d) providing a reasonable number of copies of any sub-contracts and other documents or records reasonably required by Iarnród Éireann's auditor and/or granting copying facilities to Iarnród Éireann's auditor for the purposes of making such copies;
- (e) complying with Iarnród Éireann's reasonable requests for access to senior personnel engaged in the Contractor's performance of this MSSC;
- (f) providing Iarnród Éireann with such office space at each site as reasonably required to enable Iarnród Éireann to perform each audit properly; and
- (g) appointing and maintaining a contact that is readily available to assist Iarnród Éireann and each audit team in carrying out any audit pursuant to this Clause 15.

15.3. The Contractor shall provide, free of charge, at its own work site, a room or area, with secure cabinets for the use of Iarnród Éireann's Representative for any purpose in connection with this MSSC, and shall provide, amongst other things, access to a photocopying machine, and use of facilities adequate for the confidential electronic transmission of data (if so requested).

16 INSURANCE

16.1. The Contractor shall maintain the insurances as set out at Schedule 7. Iarnród Éireann may, as a pre-condition to extension of the Term beyond the Initial Term require, at its sole option that the Contractor revise the values of existing policies of insurance and/or subscribe to new or revised forms of policies of insurance. In circumstances where this results in a material increase of charges, the Parties will come to a reasonable agreement in respect of application of charges.

16.2. The Contractor shall, upon Iarnród Éireann request, provide Iarnród Éireann with documentary evidence of the policies of insurance, by way of broker's statement and shall knowingly do nothing to invalidate the insurance policies.

- 16.3. The policies of insurance, maintained pursuant to Clause 16.1, shall
- (a) be without prejudice to any Contractor liability arising pursuant to this MSSC;
 - (b) be maintained at a sufficient level in respect of the liabilities of the Contractor under this MSSC; and
 - (c) where permissible under the terms of the policy, note the interest of Iarnród Éireann on each policy and/ or contain an “Indemnity to Principals” provision, of which Iarnród Éireann may avail.

17 **WARRANTIES**

- 17.2. The Contractor warrants, represents and undertakes to Iarnród Éireann as a condition of this MSSC that:

- (a) it has, and shall continue to hold, all rights, consents and regulatory approvals necessary to perform its obligations under this MSSC;
- (b) it has disclosed details of all material Sub-Contractors or third parties providing Equipment, Parts or Software or other IPR forming a part of the Services (including the Trackside NRO ETCS Level 1 Trackside System) or any Sub-Contractor (or a subcontractor of such Sub-Contractor) engaged by the Contractor to provide a critical portion of the Scope of Services (including the Software) or a significant portion of the Scope of Services (including in respect of the Software);
- (c) all Open Source Code and associated licences used in providing the Scope of Services (including the Software) or contained in any Documentation has been, or shall promptly be, disclosed in writing to Iarnród Éireann;
- (d) no Open Source Code provided or to be provided in carrying out the Services shall:
 - (i) impose any requirements on how the New IPR, or any portion thereof, is licensed to third parties or is to be disclosed or distributed (including in source code form);
 - (ii) create, or purport to create, obligations for Iarnród Éireann with respect to the New IPR or the Contractor’s IPRs or the New IPR; or
 - (iii) have the effect of restricting Iarnród Éireann from using any Contractor’s IPRs and/or New IPR for a Permitted Purpose.
- (e) for the duration of the Services, the Software, shall substantially offer the functionality and facilities and substantially perform in accordance with the acceptance criteria, pursuant to the Acceptance Procedures, and the Specification (as may be modified or altered by Change Order). In addition, the various components of the Software shall be and shall remain, for the duration of the foregoing period, as between themselves, substantially compatible in accordance with the foregoing applicable requirements;
- (f) the Services shall be supplied and rendered by appropriately experienced, qualified and trained personnel of the Contractor, with all due skill, care and diligence, of

whom the Contractor has adequate numbers available in order to perform its obligations set out in this MSSC;

- (g) where the Contractor maintains any professional qualifications, or accreditations, set out in the Scope of Services, or otherwise necessary to provide the Services, then, the Contractor shall maintain them in effect, as may be updated and revised by the third-party grantors, during the Term;
- (h) the on-line user manuals, whether stand-alone or updates of pre-existing documentation, included with the Documentation, shall provide such information as to allow a competent and suitably trained employee of Iarnród Éireann make proper use of the functions and facilities of the Trackside NRO ETCS Level 1 Trackside System;
- (i) that; (i) the various components of the Trackside NRO ETCS Level 1 Trackside System shall be compatible as between themselves; and (ii) any and all Standard Software, Modified Software and/or Custom Software provided by the Contractor, including, without limitation, Maintenance Releases and New releases, shall be substantially compatible with the balance of the Software, shall be backward and forward compatible with the balance of the Software, and shall not materially reduce or otherwise adversely affect the functionality or performance of the balance of the Software;
- (j) the Contractor shall use reasonable endeavours, utilising commercially available anti-virus software and good practise, to check for (and delete) commonly known viruses in the Software and/or Iarnród Éireann information technology infrastructure utilised in the supply of the Services, intended to corrupt, destroy or otherwise damage, or interfere with, the use of Iarnród Éireann business and administrative data (and the Contractor shall take appropriate emergency evasive action where necessary to meet immediate requirements and mitigate immediate risk, with the prior agreement of Iarnród Éireann (where reasonably possible in the circumstances), where aware of a virus for which no remedial anti-virus software is commercially available);
- (k) in so far as permissible, the Contractor shall provide to Iarnród Éireann the benefit of any third party warranties in respect of the Third Party Software, provided to the Contractor. The foregoing shall not operate to reduce or negate any obligations of the Contractor arising pursuant to this MSSC;
- (l) the Contractor statements and representations, set out in the Contractor Tender are correct and accurate in all material respects, based on the requirements and questions set out in the Iarnród Éireann ITT, including any clarifications arising therefrom, as of the date thereof;
- (m) it is in good standing with all applicable data privacy authorities and regulatory bodies and there are no current, past or pending data privacy related claims, failures, investigations, judgments, fines or penalties against the Contractor that will materially and adversely impact the Contractor's ability to provide the Services; and
- (n) those additional warranties and representations not inconsistent with the provisions of this Clause 17.2 if any, set out elsewhere in this MSSC shall apply.

17.3. Iarnród Éireann warrants to the Contractor that:

- (a) it has full capacity and authority and all necessary consents to enter into and to perform this MSSC and that the MSSC is executed by a duly authorised representative of Iarnród Éireann; and
- (b) it shall perform its responsibilities set out in this MSSC using reasonable skill, care and diligence and direct its personnel and staff to follow (and properly supervise such personnel in such regard) all written instructions of the Contractor in connection with all aspects of the Software properly made as set out in, or generally in accordance with, the provisions of the Scope of Services.

18 LIMITATIONS & EXCLUSIONS OF LIABILITY

18.1. The Contractor's aggregate liability to Iarnród Éireann in any Year during the Term for all matters arising under or in connection with this MSSC, other than in respect of the excluded amounts, is limited to an amount equal to 100% of that Year's Fixed Charges under the MSSC and applies in contract, tort or delict and otherwise to the extent allowed under the law of the contract.

18.2. The excluded amounts are any amounts for which the Contractor is liable to Iarnród Éireann and which pertain to any cost, loss or damage arising out of or in connection with (or which are amounts otherwise payable by the Contractor to Iarnród Éireann for):

- (a) the death of, personal injury to or the loss of or damage to any person;
- (b) the loss of or damage to Iarnród Éireann's property or to any third party property;
- (c) [damages under the Performance Regime pursuant to Clause 4;]
- (d) the Contractor's fraud (including fraudulent misrepresentation), criminal action or Wilful Default;
- (e) for breach of the Contractor's obligations in respect of confidentiality as set out in Clause 10 (Confidential Information):
- (f) pursuant to the indemnities in respect of:
 - (i) intellectual property rights at Clause 0 (Intellectual Property Rights)
 - (ii) employment matters at Clause 11 (Personnel)
 - (iii) data protection and security as referred to at Clause 14 (Data)
- (g) for any statutory fines and penalties arising from or in connection with the Contractor carrying out the Services.

18.3. Notwithstanding any other provision of the contract, the Contractor shall not be liable in contract, tort (including negligence, breach of contract, breach of statutory duty) or otherwise for any consequential loss, economic or incidental loss, expense or damages or for loss of profit, loss of use, loss of goodwill, loss of anticipated savings, loss of revenue, loss of production, loss of data, loss of business (each such category of loss to be referred to together

as "Consequential Loss") **PROVIDED ALWAYS** that nothing in this clause shall exclude or limit the Contractor's liability to Iarnród Éireann for Consequential Loss:

(i) to the extent such Consequential Loss has arisen out of or in connection with (or is constituted by):

- the application of Service Points under Clause 4,
- death, personal injury, loss of or damage to any third party property;
- the Contractor's fraud (including fraudulent misrepresentation), criminal action or Wilful Default; or

(ii) which is recoverable by the Contractor under any policy of insurance.

19 **FORCE MAJEURE EVENT**

19.1. A Party may delay performance of an obligation under this MSSC if and to the extent that it:

(a) cannot perform the obligation because of an event of Force Majeure, which prevent performance thereof and which, by the exercise of reasonable diligence, said Party is unable to prevent. This event includes, but is not limited to:

- (i) act of God;
- (ii) outbreak of hostilities, acts of terrorism or civil commotion;
- (iii) the act of any government or authority (including a failure to grant any licence or consent or a change in the Law or interpretation of the Law), other than those of and in Ireland;
- (iv) fire, explosion, flood, or other accidental damage;
- (v) loss at sea;
- (vi) in respect of Iarnród Éireann and CIE, any industrial action (whether official or unofficial) involving staff; and/or
- (vii) any disaster affecting a third party for which a substitute third party is not reasonably available;

PROVIDED THAT, for the avoidance of doubt, the following events shall not be deemed to be events of Force Majeure:

- (viii) in respect of Contractor, any industrial action (whether official or unofficial) involving Contractor Personnel;
- (ix) adverse weather conditions;
- (x) failure of plant, failure of machinery, facilities, computers or vehicles;
- (xi) non-performance by suppliers or subcontractors, including the SubContractors;

- (xii) any event in respect of which the Integrated NRO ETCS Level 1 Trackside System includes redundancy, back-up, disaster recovery or contingency; or
- (xiii) any criminal action; and
- (xiv) Brexit.

19.2. If either Party is affected by a Force Majeure Event, then, it shall;

- (a) notify the other Party in writing giving full details of the event as soon as reasonably possible and in any event within four (4) hours of becoming aware of it;
- (b) promptly provide any further information in relation to the delay that any other Party reasonably requires;
- (c) uses all reasonable endeavours to continue to perform the obligation; and
- (d) promptly take any steps reasonably required by any other Party to avoid or mitigate possible losses to that Party arising from the delayed performance.

19.3. The Party affected by the event of Force Majeure shall resume performance of the obligation as soon as reasonably possible after the event preventing performance has ceased. Upon cessation of the effects of the event of Force Majeure, the Party initially affected thereby shall promptly notify the other of such cessation.

19.4. If as a result of a Force Majeure, the performance by the Party initially affected of its obligations under this MSSC is affected, then, such Party shall, subject to the provisions of Clause 19.6, perform those of its obligations not affected by a Force Majeure. In performing those of its obligations not affected by a Force Majeure, the Party initially affected by a Force Majeure shall deploy its resources such that (when taken together with other obligations to its customers and third Parties) there is no undue discrimination against the Party.

19.5. To the extent that a Party is prevented as a result of a Force Majeure from providing all of the services or facilities to be provided under this MSSC, the Party shall be released to the equivalent extent from its obligations to make payment for such services or facilities or complying with its obligations in relation thereto.

19.6. If performance is delayed for a continuous period of ninety (90) calendar days, or greater, the Party to whom performance is owed may, by written notice to the other Party, elect to suspend this MSSC for a period of not less than five (5) and not greater than thirty (30) calendar days, or, to terminate this MSSC, pursuant to Clause 20.3(d). Following the period of suspension, the relevant Party may again elect whether or not to terminate the MSSC aforesaid, but may not again suspend the MSSC, save with the prior written consent of the other Party.

19A COVID

Where any:

- (i) legislative enactment or government or regulatory authority issued requirements with which the Contractor is bound by law to comply; or

(ii) guidance of any government regulatory authority having jurisdiction on public health matters in Ireland

is promulgated, made or issued in response to the Covid 19 virus after the Commencement Date ("**Covid Legislation**") and which either:

(iii) stops the carrying out of the Services completely; or

(iv) requires the implementation of measures or work methods which cause greater delay or disruption to the carrying out of the Services than the measures and work methods specified in the Construction Industry Federations "Construction Sector C-19 Pandemic Standard Operating Procedures" issued on 14 April 2020;

then:

(v) such Covid Legislation shall be deemed an event of Force Majeure for the purposes of clause 19, subject to compliance with any relevant requirements of that clause; and

(vi) to the extent that:

a. the stoppage to the Services referred to in sub-clause (iii) above; or

b. the implementation of measures or work methods referred to in sub-clause (iv) above causes the Contractor to incur additional costs in carrying out the Services, the Contractor shall be entitled to claim for such additional costs by notice in writing to Iarnród Éireann (to include particulars of the additional costs and identifying how the costs resulted from compliance with the Covid Legislation), such notice to be issued within 40 days of the additional costs being incurred (and the parties agree and acknowledge that such notice is a precondition to any entitlement for the Contractor under this clause 19A(vi)).

20 TERMINATION AND ITS CONSEQUENCES

20.1. Where a Party has committed a material breach of its obligations under the MSSC which is either:

(a) incapable of remedy, by its nature; or

(b) is capable of remedy, but where the Party has failed to remedy such breach within thirty (60) calendar days of receipt of a written notice specifying details of the breach from the other Party;

then the MSSC may be terminated immediately on written notice by the Party not in breach.

20.2. Iarnród Éireann may terminate this MSSC, without liability to the Contractor, by giving notice to the Contractor at any time, if:

(a) the Contractor has entered into any composition or arrangement with its creditors or (being an individual or firm) becomes bankrupt or (being a company) becomes subject to an examination order or goes into liquidation (otherwise than for the purposes of amalgamation or reconstruction), or a resolution is passed for the winding-up of the Contractor, or the Contractor being a body corporate is struck off the register of companies; or

- (b) an encumbrancer takes possession of, or a receiver, manager or other similar officer is appointed in respect of, the whole or any material part of the property or assets of the Contractor; or
- (c) the Contractor ceases, or threatens to cease, to carry on business;
- (d) the Contractor becomes unable to pay its debts as and when they fall due, within the meaning of Section 569 and 570 of the Companies Act 2014 of Ireland (as amended);
- (e) the Contractor suffers a material decline in, either, its credit rating, as determined by a reputable national or international credit rating agency, or its net asset value, such that Iarnród Éireann reasonably believes the Contractor shall no longer be able to perform its obligations in accordance with this MSSC;
- (f) the Contractor shall suffer any circumstances analogous to any of the foregoing in any jurisdiction other than Ireland; and/or
- (g) Iarnród Éireann reasonably believes that any of the events mentioned above is about to occur in relation to the Contractor and notifies the Contractor accordingly.

20.3. This MSSC may be immediately terminated by notice in writing:

- (a) by either Party, where the conduct of the other Party constitutes Wilful Default;
- (b) by Iarnród Éireann, where the Contractor assigns or transfers this MSSC or any of its rights, interests or obligations herein, except as expressly permitted hereunder;
- (c) by Iarnród Éireann, in circumstances of Serious Service Failure;
- (d) by either Party where the other Party is subject to an event of Force Majeure of greater than ninety (90) days, as set out in Clause 19.6;
- (e) by either Party, where the other Party is in breach of its obligations of confidentiality, as set out in Clause 10;
- (f) by either Party, where the other Party is in breach of its obligations in respect of Data Protection Legislation compliance, as set out in Clause 14;
- (g) by Iarnród Éireann, where Contractor is in breach of its obligations in respect of information security, giving rise to a Data Event, as set out in Clause 14; and/or
- (h) by Iarnród Éireann if there is a Change of Control of the Contractor but excluding, for the avoidance of doubt, any initial public offering of the Contractor on a recognised stock exchange and in such circumstances:
 - (i) the Contractor shall deliver a written notice to Iarnród Éireann if there is a Change of Control. Where possible this notice shall be delivered as soon as practicable prior to the date on which the Change of Control is expected to take place. Where this is not possible the notice shall be delivered not more than thirty (30) calendar days after the date the Change of Control occurred;

- (ii) Iarnród Éireann may terminate this MSSC where, acting reasonably and in good faith, it objects to the Change of Control on the grounds of the Contractor's continuing ability to perform its obligations under this MSSC, or the fact that the Contractor shall thereafter be under the control of a competitor of Iarnród Éireann, or a party with whom Iarnród Éireann would not, in the ordinary course, choose to do business with, based on bona fide business reasons, PROVIDED THAT, Iarnród Éireann shall not be permitted to exercise its right where:

- a Iarnród Éireann has agreed in advance to the Change of Control; or
- b Iarnród Éireann has not served a written notice terminating this MSSC within thirty (30) days of the date that Iarnród Éireann received the Contractor's notice set out in sub-clause (i);

PROVIDED THAT, for the avoidance of doubt, if Iarnród Éireann should exercise the right to terminate granted by this sub-clause (h), no right of action or remedy shall accrue to Iarnród Éireann as a result of such termination.

20.4. Termination of the D&B Contract in accordance with its terms shall, subject to the provisions of this Clause 20, operate to terminate this MSSC with immediate effect.

20.5. If this MSSC shall expire or be subject to early termination, howsoever occasioned, then Iarnród Éireann shall have the right to request Contractor assistance in accordance with the provisions of the Exit Plan set out at 0 (such Exit Plan to be reviewed and confirmed by the Parties using their good faith endeavours immediately after execution of this MSSC, but in the absence of any agreement between them as to any revision shall apply as set out in 0).

20.6. In the event that either party should terminate the MSSC in accordance with this Clause 20, then, without prejudice to the rights and remedies of either party under the MSSC:

(a) Iarnród Éireann shall pay to the Contractor:

- (i) all Fixed Charges (if any); and
- (ii) any amounts in respect of Services for which payment by application of the Schedule of Rates applies;

which would have been or become properly due and payable for Services completed up to the date of the termination but for that termination, and

(b) the Contractor shall reimburse to Iarnród Éireann, all Fixed Charge (if any) pre-paid by Iarnród Éireann which relate to the period following termination,

in both cases within a period of thirty (30) calendar days of the date of termination (subject to any rights of set off available to the relevant Party under or in connection with the MSSC). Prior to the Parties' payments aforesaid, the Parties shall agree, using good faith endeavours, any appropriate reconciliation's of sums due, including calculation of any Service Points (if any) due prior to the date of termination.

20.7. Subject to clause 20.8(b) below, termination of this MSSC pursuant to this Clause 20:

- (a) shall not prejudice or affect any right of action or remedy, which shall have accrued or shall thereafter accrue to either Party; and
- (b) subject to the provisions of Clause 20.5, shall not entitle the Contractor to any payment, or compensation, whatsoever of howsoever arising.

20.8. In the event of any termination or expiry of this MSSC, howsoever occasioned:

- (a) Contractor and Iarnród Éireann shall each carry out their respective responsibilities as specified in the Exit Plan;
- (b) Contractor shall provide to Iarnród Éireann or a replacement contractor nominated by Iarnród Éireann any Iarnród Éireann Data in its possession, together with electronic outputs from the Contractor customer relationship management software used in the provision of the Services, either in its then current format or in a format nominated by Iarnród Éireann (in which event Iarnród Éireann shall reimburse Contractor's reasonable data conversion expenses), together with all training manuals and other related documentation, and any other information and all copies thereof owned by Iarnród Éireann;
- (c) Contractor shall cease to use Iarnród Éireann's Data and, at the request of Iarnród Éireann, shall destroy all copies of Iarnród Éireann's Data then in its possession;
- (d) Contractor shall return to Iarnród Éireann all Iarnród Éireann materials, documentation and other items in its possession;
- (e) Contractor shall render reasonable assistance to Iarnród Éireann, if requested, to the extent necessary to effect an orderly assumption by a replacement contractor of some or all of the Services, including, without limitation, in respect of any Iarnród Éireann procurement exercise, and Iarnród Éireann shall reimburse Contractor for such assistance at the rates set out in the Exit Plan, or where not set out there, then, agreed between the Parties Representatives;
- (f) Contractor shall, to the extent required by Iarnród Éireann, continue to perform the Services up to the end of Exit Period;
- (g) Contractor shall offer to rent and licence the Contractor Hardware and/or Software and other Contractor facilities used in the provision of the Services (to the extent possible) to Iarnród Éireann or a replacement contractor for a fair market rental and licence charge for a period of the maximum term of this MSSC (up to 30 years, together with the continuation of all applicable maintenance and support arrangements and all necessary software licensing arrangements;
- (h) Iarnród Éireann shall be entitled to offer any employee or Sub-Contractor of Contractor who has been involved in performing Contractor's obligations hereunder employment or an agreement for services with Iarnród Éireann and Contractor agrees that if such person accepts such offer Contractor shall release such person from any breach of contract with it which such acceptance may otherwise involve; and

- (i) as soon as possible following any notice of termination being given (in the case of an early termination of this MSSC) and no later than ninety (90) calendar days prior to the expiry of the Term (in the case of an expiry of the MSSC), Contractor shall, where the Transfer Regulations apply, provide to Iarnród Éireann, or to a replacement contractor nominated by Iarnród Éireann, details of the identity (to the extent lawfully permitted) and terms of employment of all Contractor's personnel who are then employed in the provision of the Services, as reasonably required by Iarnród Éireann, in order to permit compliance by Iarnród Éireann and/or a replacement contractor with the provisions of the Transfer Regulations or any statutory or regulatory modification, amendment or replacement thereof.

21 IARNRÓD ÉIREANN MANAGEMENT STEP-IN

- 21.1. If a right of termination by Iarnród Éireann has arisen under this MSSC in respect of any default or breach by the Contractor then, as an alternative to exercising its right to terminate this MSSC in accordance with the terms of this MSSC, Iarnród Éireann may, at its option and without prejudice to its other rights and remedies under this MSSC or at Law, engage a management team or Third Party to manage or provide the affected Services (or part thereof).
- 21.2. If Clause 21.1 applies and Iarnród Éireann wishes to engage a third party to take management and direction of the relevant element of the Services, Iarnród Éireann will notify the Contractor of:
 - (a) the action it wishes to take;
 - (b) the reason for such action;
 - (c) the date it wishes to commence such action;
 - (d) the time period which it believes will be necessary for such action, which will be reasonable and proportionate to the event giving rise to it; and
 - (e) to the extent practicable, the effect on the Contractor and its obligation to provide the Services during the period while such action is being taken.
- 21.3. Following service of such notice, Iarnród Éireann may take such action as notified under Clause 21.2 and any additional action as it reasonably believes is necessary (together "**Required Action**") and the Contractor shall give all reasonable assistance to Iarnród Éireann while it is taking such Required Action.
- 21.4. The steps which Iarnród Éireann may take pursuant to this Clause 21 shall include the partial or total suspension of the obligation of the Contractor to provide all or any part of the affected Services until such time as the Contractor shall have demonstrated to the satisfaction of Iarnród Éireann that it shall perform (and is capable of performing) its obligations in respect of the relevant Services component to the required standard.
- 21.5. The Contractor shall provide all reasonable co-operation to Iarnród Éireann and the third party contractor, so as to provide the Services as soon as possible, including providing Iarnród Éireann and the third party contractor reasonable access to the personnel and premises, equipment, material and Software used by the Contractor to provide the Services, the

Technical Library and any Documentation. The Contractor shall be entitled to payment for such reasonable co-operation where it would have been entitled to payment under this MSSC, had Iarnród Éireann not exercised its management step-in rights under this Clause 21

- 21.6. The Contractor shall indemnify and keep Iarnród Éireann and CIE indemnified against any additional and reasonable costs and expenses (including the costs of engaging any third party contractor and other costs ordinarily payable to the Contractor in respect of the relevant element of the Services) it incurs in taking the steps set out in Clause 21.
- 21.7. Nothing in this Clause 21 limits or affects the Contractor's liability to Iarnród Éireann and CIE with respect to any breach by the Contractor of its obligations contained in the MSSC.
- 21.8. This Clause 21 is without prejudice, and in addition, to IE's rights to terminate this contact.
- 21.9. The exercise of Iarnród Éireann of the management step-in rights shall continue for a reasonable time period. Immediately upon Iarnród Éireann (or its nominee) having completed such tasks pursuant to Clause 21.3 such that the provision of the Services is no longer substantially prevented, hindered, degraded or delayed and Iarnród Éireann notifying the Contractor of this, it shall give the Contractor, not less than seven (7) calendar days' written notice ("**Step-Out Notice**"), that the engaged third party will be stepping out of the management and direction role in relation to the provision of the Services, and upon expiry of such notice, the Contractor shall immediately assume responsibility once more for the provision of the Services in accordance with the terms of the MSSC. The Step-Out Notice to the Contractor shall specify in reasonable detail (to the extent that it is reasonably practicable in the circumstances):
- (a) the action the third party Iarnród Éireann has engaged in exercising the management step-in rights;
 - (b) the date on which, subject to Iarnród Éireann being satisfied with the plan the Contractor is required to develop, and the Contractor's ability to progress in implementing the plan, Iarnród Éireann plans to conclude this action (the "**Step-Out Date**").
- 21.10. In circumstances where Iarnród Éireann exercise their rights under this Clause 21, any third party engaged will be subject to the confidentiality obligations as found under Clause 10, in the exercise of their obligations.
- 21.11. While the Contractor's rights and obligations to provide all or any part of the Services are suspended, Iarnród Éireann shall not be obliged to pay the relevant Fixed Charges in respect of the suspended elements of the Services.
- 21.12. Where Iarnród Éireann seeks to exercise its rights of step-in but the Contractor disputes whether or not Iarnród Éireann has a right to step-in in accordance with this Clause 21 and/or which trigger for step-in (if any) has occurred, the Contractor shall comply with such step-in notwithstanding such dispute, but such compliance shall be without prejudice to the Contractor's right to pursue such dispute (including as to the Contractor's costs of complying with the step-in) separately to such compliance, which shall be done by way of the Dispute Resolution Procedure.

22 CONTRACT TRANSFER

22.2. Notwithstanding anything to the contrary in this Contract, if Iarnród Éireann and/or CIE or the Government or the Oireachtas of Ireland should re-organise the business of Iarnród Éireann and/or CIE (whether by dividing or transferring either of their respective businesses (which results in (i) CIE disposing of any right or interest in the Network (ii) Iarnród Éireann ceasing to be the Network operator) between two or more corporate bodies, or otherwise) (the “**Reorganisation**”) or if Iarnród Éireann or CIE shall be subject to an Insolvency Event, then, CIE or Iarnród Éireann (as applicable):

- (a) to the extent permitted to do so, shall notify the Contractor prior to the occurrence of such proposed Reorganisation or Insolvency Event;
- (b) in any event, shall notify the Contractor as soon as reasonably practicable on the occurrence of such Reorganisation or Insolvency Event; and (c) procure, as soon as reasonably practicable, that:
 - (i) the obligations of Iarnród Éireann and/or CIE under this MSSC shall be assigned or transferred (as the case may be) immediately to such body or bodies as can and will perform the obligations of Iarnród Éireann and/or CIE under this MSSC (the “**Successor**”) provided such Successor has the ability to perform the applicable obligations under this MSSC (as applicable); and,
 - (ii) if such assignment or transfer occurs, the obligations of Iarnród Éireann to pay any amounts owing to the Contractor shall transfer to the Successor and be applied in the same manner as under this MSSC.

23 CORRUPT GIFTS, INVESTIGATIONS AND EVIDENCE

23.1. The Contractor shall not and shall procure that its Sub-Contractors shall not:

- (a) offer or give or agree to give any person employed or engaged by Iarnród Éireann any gift or consideration of any kind as an inducement or reward for doing or forbearing to do or for having done or forborne to do any act in relation to the obtaining or performance of this MSSC, or any other agreement with Iarnród Éireann, or for showing or forbearing to show favour or disfavour to any person in relation to this MSSC; or
- (b) enter into this MSSC if, in connection with it, commission has been paid or agreed to be paid to any person employed or engaged by Iarnród Éireann by the Contractor or on the Contractor’s behalf or to the Contractor’s knowledge.

23.2. The Contractor shall provide all commercially reasonable and necessary assistance to Iarnród Éireann in facilitating any electronic discovery process relating to Iarnród Éireann Data.

23.3. The Contractor shall provide reasonable assistance to Iarnród Éireann in facilitating any audit, investigation, criminal investigation or enquiry, by any duly authorised regulatory body or law enforcement agency to which Iarnród Éireann is subject (the “**Investigation**”). The Contractor shall be repaid any reasonable expenses incurred in giving any such assistance.

23.4. In circumstances of third-party Investigation, dispute between the Parties, or third party dispute with Iarnród Éireann, whether conducted by way of litigation or alternative dispute

resolution forum, the Contractor shall assist Iarnród Éireann in relation to retrieval of evidence, whether in electronic or documentary form, and whether under the control of the Contractor or Iarnród Éireann (where Contractor assistance in retrieval is required).

- 23.5. Iarnród Éireann may, not more frequently than once in any six (6) month period during the Term (unless a material discrepancy is found), upon not less than five (5) days prior written notice, and during the working day, inspect and audit, at its own expense, the Contractor premises, systems, infrastructure, compliance with applicable laws and records, utilised in the supply of the Solution (an "Audit"). Iarnród Éireann's internal audit department or its external auditors or any combination thereof (the "Auditors") may conduct or assist in an Audit. In the conduct of an Audit, the Contractor shall provide such assistance or services as Iarnród Éireann may reasonably require and the Auditors shall use reasonable endeavours to avoid disruption to the conduct of the business of the Contractor.
- 23.6. Where Iarnród Éireann data is subject to third party governmental, national security or law enforcement agency, review and investigation (the "**Third Party Investigation**") then, the following shall occur:
- (a) the Contractor shall co-operate with such third-party governmental agency in relation to the Third Party Investigation only where and to the extent mandated by Law to which the Contractor is subject;
 - (b) the Contractor shall not co-operate with requests for assistance from any subcontractor or third party supplier of goods and/or services on which the Solution is based (including, but not limited to, suppliers of Infrastructure as a Service (IAAS) or Platform as a Service (PAAS), in relation to a Third Party Investigation where such assistance would require the Contractor to either fail to: (i) discharge its contractual obligations to Iarnród Éireann in general, observe its obligations: (i) of confidentiality, as set out in Clause 10; and (ii) pursuant to the Data Protection Legislation, as set out in Clause 14; and
 - (c) the Contractor shall inform Iarnród Éireann promptly upon: (i) receiving any aforementioned request for assistance in relation to a Third Party Investigation from a third party set out in sub-clause (b); and/or (ii) becoming aware of any Third Party Investigation occurring or having occurred.
- 23.7. The provisions of this Clause 23 are intended by Parties to regularise certain areas which may be applicable in respect of certain issues arising pursuant to the supply of the Services and Parties performance of this MSSC generally. However, the Parties recognise and agree that the provisions of this Clause 23 shall at all times be subject to the provisions of applicable Law and court decision, whatsoever and howsoever arising.

24 **DISPUTE RESOLUTION PROCEDURE**

24.1. The Parties and CIE agree that:

- (a) any dispute, controversy or claim arising out of or in connection with the Contract between them (a "**Dispute**") is resolved in accordance with this Clause 24, such procedures to be engaged through the service of a written notice of the Dispute by either Party or CIE to all other parties to the contract;

- (b) the notice in writing from any party to the contract referring the Dispute for initial resolution identifies the matter(s) in Dispute, the relief and/or remedy sought by that party, the basis for claim of relief and/or remedy, the applicable provisions of this contract and any other relevant matters;
- (c) once commenced, the parties to the contract agree that they shall seek resolution of the notified Dispute acting only in good faith and with a view to resolving the Dispute as expeditiously as possible;
- (d) the procedures in this Clause 24 are without prejudice to the entitlement of any party to the contract to refer a Dispute relating to payment (only) to adjudication in accordance with the Construction Contracts Act 2013.

24.2. After its notification, a Dispute between the parties to the contract regarding the subject matter of the contract (including, but not limited to, the performance of the parties under the contract) is resolved in accordance with the following procedures:

- (a) in the first instance, the notified Dispute will be referred to the *Project Manager* (on behalf of the *Client*) and a senior on site representative of the *Contractor* (the "**Contractor's Representative**") (and where the dispute involves CIE, a senior representative of CIE) who endeavour to resolve the Dispute within a period of twenty one (21) days of the date of the original notice of the Dispute;
- (b) if the *Project Manager* and the Contractor's Representative (and the CIE representative, if applicable) cannot resolve the Dispute within the period specified in clause 24.2(a), then any Party (or CIE, as applicable) may, by notice in writing to the other parties, escalate the matter for resolution to a senior executive of the *Client*, and a senior executive for the *Contractor* (and a different senior representative of CIE, where applicable) who endeavour to resolve the Dispute within a period of twenty one (21) days of the date of the notice escalating the Dispute; and
- (c) if the identified senior executives aforesaid cannot resolve the Dispute within the period specified in clause 24.2 (b), then any party may, by notice in writing to the other parties, escalate the Dispute for resolution to the respective chief financial officers for the *Client* and the *Contractor* (and CIE, as applicable) who endeavour to resolve the Dispute within a further period of fourteen (14) days of the date of the notice of escalation.

All persons appointed to participate in the Dispute resolution procedures above shall have authority to settle the Dispute on behalf of the parties they each represent (or shall be in a position to obtain immediate instructions from their principals as to any proposals for resolution being put forward).

24.3. If the *Dispute* is not resolved pursuant to the procedures set out in Clause 24.2 within the periods set out therein, then subject to the Mediation Act 2017:

- (a) any party to the contract may refer the matter for mediation by service on the other parties (as applicable) of a written notice requesting same (a "**Mediation Notice**");

- (b) where all recipients of a Mediation Notice agree to participate in the reference of the Dispute to mediation (and any failure by a party to respond to such notice within 7 days is deemed a refusal by that party to mediate), all parties do all things required to select and appoint a mediator (the “**Mediator**”) who endeavours to assist the parties in reaching agreement in respect of the Dispute;
- (c) the mediation is carried out in accordance with the Centre for Dispute Resolution (“**CEDR**”) Model Mediation Procedure 13th Edition (or if amended, the current version thereof in effect at the time of the Dispute) or any other such model which the parties agree on, in the circumstances;
- (d) if the parties agree to refer the Dispute to mediation, they sign a mediation agreement in accordance with CEDR’s Model Mediation contract, or in such other terms as may be agreed in writing by the Parties (the “**Mediation Contract**”) such Mediation Contract to be signed not less than fourteen (14) days prior to the parties attending the mediation;
- (e) the mediation takes place in Dublin and the language of the mediation is English;
- (f) any third party costs of the mediation (including the appointed mediator's fees) are shared equally between the Parties; and
- (g) the Mediation Contract is governed by, construed and takes effect in accordance with, the law of Ireland.

24.4. If the parties are unable to reach a settlement to resolve the Dispute pursuant to any mediation conducted under Clause 24.3, then, the Parties may agree to ask the Mediator to produce a recommendation for settling the Dispute. Any such recommendation is non-binding on the parties and is not be admissible in any arbitration or adjudication on the Dispute.

24.5. Where any Dispute notified under Clause 24.1 has not been resolved pursuant to the procedures set out in Clause 24.2 and remains unresolved after:

- (a) a period of 14 days after the expiry of the periods specified in Clause 24.2 where no mediation has been commenced in accordance with Clause 24.3 within that period; or
- (b) a period of 2 calendar months after the expiry of the periods specified in Clause 24.2 if a mediation in respect of the Dispute has been commenced in accordance with Clause 24.3;

then the dispute shall be resolved by way of arbitration in accordance with the Arbitration Rules for Use with Public Works and Construction Services Contracts (AR 1). Any party may refer the Dispute to arbitration under those rules by notice in writing to the other parties.

24.6. Subject to the forgoing provisions of this Clause 24, the parties to the contract otherwise agree to submit to the exclusive jurisdiction of the Courts of Ireland in respect of any Dispute.

25 GENERAL

25.1. Notices and Communications

- (a) Except as otherwise expressly provided in the MSSC, no communication from one Party to the other shall have any validity under this MSSC unless made in writing by or on behalf of the Party. For the purposes of this the address of each Party shall be as set out on the first page hereof, provided that, either Party may change its address and representative for service by notice, to the other Party, as provided herein. Any notice or other communication which either Party is required or authorised by the MSSC to serve on the other shall be sufficiently served if sent to the authorised representative of the other at the address specified herein: (i) by hand; or (ii) by registered post; or (iii) by facsimile transmission, confirmed by registered post or recorded delivery; or (iv) by electronic mail. In circumstances where a Party receives an “out of office” email response, then the relevant Party will also send the other Party the relevant notice or communication by registered post. Notices sent by registered post shall be deemed to be served three (3) days following the day of posting. Notices sent by facsimile transmission shall be deemed to be served on the day of transmission if transmitted before 4:00 p.m. on a working day, receipt acknowledged, but otherwise on the next working day, provided that, confirmation by registered post is sent the same day. Notices sent by electronic mail, where such is an established means of communication between the Parties, shall be deemed to be served on the day of transmission if transmitted before 4:00 p.m. on a working day, receipt acknowledged, but otherwise on the next working day. In all other cases, notices and other communications shall be deemed to have been served on the day they are actually received.
- (b) All notices and other communications served hereunder shall quote the MSSC Reference Number. Notices of termination served hereunder shall expressly refer to the one or more Clauses under the provisions of which they are served.
- (c) The language of this MSSC shall be English and all interactions, notices and other communications between the Parties, together with all documentation, software program human readable text, and other deliverables, in whatever format, provided by the Contractor (the “Deliverables”), shall be in the English language. In the event that translation of Deliverables provided by the Contractor into English is required in order to comply with the foregoing requirement, then, the Contractor shall procure English language version Deliverables, at its own cost. The Parties agree that:
 - (i) in the event of conflict or inconsistency between the original format Deliverable and the English language translation, the latter shall prevail;
 - (ii) the Contractor warrants and represents that translation of Deliverables shall be accurate, shall be provided at Contractor sole risk, and Iarnród Éireann shall be under no obligation to query the original against the translation Deliverable and shall be assumed not to have the competency to do so; and

- (iii) translation of Deliverables not remove or reduce Contractor obligation to perform Services in accordance with the requirements of this MSSC, including, timetable obligations.
- (d) The Parties hereby agree, including for the purposes of the Electronic Commerce Act, 2000, that:
 - (i) words in an electronic form shall be deemed to be “writing” for the purposes of all applicable legislation where “writing” is required;
 - (ii) words in an electronic form shall be deemed to be “signed” for the purposes of all applicable legislation where a “signature” is required; and
 - (iii) electronic evidence shall be admissible in any court or other quasi-judicial proceedings between the parties.

25.2. Waiver

The waiver by either Party of any breach of this MSSC by the other Party in a particular instance shall not operate as a waiver of subsequent or other earlier breaches of the same or a different kind. No failure by either Party in exercising or enforcing any of its rights under this MSSC shall be deemed to be a waiver of such rights. In addition to any other provisions hereof, each of the Parties agrees to act at all times, and to exercise any discretion conferred upon it hereunder, in all cases, with the utmost good faith.

25.3. Severability

If any provision of this MSSC is invalid or unenforceable at Law, then, such provision shall be severed and the remainder of this MSSC shall continue in full force and effect.

25.4. Further Assurances

Each Party, upon receipt of notice from the other Party, shall sign (or cause to be signed) all further documents, do (or cause to be done) all further acts, and provide all assurances as may reasonably be necessary or desirable to give effect to the terms of this MSSC.

25.5. Entire Agreement

This MSSC contains the whole and entire agreement and arrangement between the Parties relating to the subject matter hereof and supersedes and replaces all prior representations, agreements, arrangements and understandings between the Parties relating to that subject matter. Each Party acknowledges that, in entering into this MSSC, it does not rely on any statement, mis-representation, assurance or warranty (whether it was made negligently or innocently) of any person, whether a Party to this MSSC or not, other than as expressly set out in this MSSC. Nothing in this Clause 25.5 shall limit or exclude any liability for fraud, including, but not limited to, fraudulent misrepresentation.

25.6. Counterparts

This MSSC may be executed in one or more counterparts, each of which is deemed an original, but all of which together are deemed to be one and the same agreement.

25.7. Variations

Any variation or amendment to this MSSC shall be of no effect, unless confirmed in writing and signed by the Representative of each Party.

25.8. Not Used

25.9. Governing Law

- (a) This MSSC shall be considered as an agreement made in Ireland. The validity, construction and performance of this MSSC shall be governed by and construed in accordance with the laws of Ireland (excluding Northern Ireland) and, subject only to Clause 24, the Parties hereto agree to submit to the exclusive jurisdiction of the Courts of Ireland under or in relation to this MSSC.
- (b) The Parties shall apply the provisions of the Dispute Resolution Procedure to attempt to resolve any dispute which may arise during the Term or thereafter.

IN WITNESS WHEREOF the parties hereto have caused this Agreement to be executed the day and year first before written.

SIGNED for and on behalf of

Iarnród Éireann-Irish Rail

.....

by

(print name)

in the presence of:

.....

(signature)

(Witness' Signature)

(Witness' name)

(Witness' Address)

(Witness' Occupation)

SIGNED for and on behalf of

Córas Iompair Éireann

.....

by

(print name)

in the presence of:

.....

(signature)

(Witness' Signature)

(Witness' name)

(Witness' Address)

(Witness' Occupation)

PRESENT when the common seal
of [CONTRACTOR #1],
was affixed hereto

{seal}

.....
(print name)

.....
(signature)
(Director)

(Witness' Signature)

.....
(print name)

(Witness' name)

.....
(signature)
(Director/Secretary)

(Witness' Address)

(Witness' Occupation)

PRESENT when the common seal
of [CONTRACTOR #2],
was affixed hereto

{seal}

.....
(print name)

.....

(signature)

(Director)

.....

(Witness' Signature)

(print name)

(Witness' name)

.....

(signature)

(Director/Secretary)

(Witness' Address)

(Witness' Occupation)

Schedule 1 - Defined Terms

"Affiliate" means any body corporate associated with a Party at the applicable date, whether or not it is associated with the Party at the date of the contract. An associate corporation means:

- (i) any corporation, the whole or part of which is owned, directly or indirectly, by the Party;
- (ii) any corporation which directly or indirectly owns the whole or part of the Party, or
- (iii) any corporation, subsidiary, or business entity under the direct or indirect control of such corporation, subsidiary, or business entity as described in (i) or (ii) above;

and in the case of the Iarnród Éireann, its Affiliates include CIE.

"Associated Equipment" means Parts, Special Tools, Manuals and other property (other than the NRO ETCS Level 1 Trackside System) delivered, or to be delivered, to Iarnród Éireann by the Contractor under the D&B Contract and/or this MSSC;

"Change Control Events" has the meaning given to such term in Clause 5.2;

"Change of Control" is deemed to occur if a person who Controls any body corporate ceases to do so or if another person acquires Control of it;

"Change Order" means an order issued by either the Contractor or Iarnród Éireann in order to amend or vary the Scope of Services;

"Commencement Date" means the date on which the Contractor brings section 2 of the Works under the D&B Contract to "Completion" as defined in that agreement, as notified to Contractor in writing, in accordance with the D&B Contract;

"Confidential Information" means all information designated as such by any Party in writing, together with all such other information, which relates to the business affairs, finance, products, data, software programs, specifications, documentation, software listings, source or object code, developments, trade secrets, know how, personnel, customers and suppliers of any Party and/or CIE, user information, information designated as such by a Regulator and all other information which may reasonably be regarded as the confidential information of the disclosing Party;

"Consumable Spares" means parts, stocks of which would ordinarily be held by a Iarnród Éireann in order to replace materials and components fitted to or used in the NRO ETCS Level 1 Trackside System which are replaced rather than repaired as those items fail or require replacement due to breakage, wear, age, usage or consumption in service. The supply and provision of the consumable spares is the Contractor's responsibility;

"Contract Year" means each period of thirteen (13) Payment Periods beginning from the Commencement Date;

"Contractor's Employees" means those persons employed or engaged by the Contractor from time to time in that part of the Contractor's undertaking which provides the Scope of Services;

“Contractor's Fault” means any Fault in relation to Parts and Special Tools which is not an Iarnród Éireann's Fault;

“Contractor's Parts” means those Parts and Special Tools purchased or otherwise procured by the Contractor for the purposes of providing the Scope of Services, which may form part of the Minimum Stock Holding;

“Contractor Personnel” means the Contractor's employees, agents and/or contractors working for or on behalf of the Contractor;

“Contractor's Representative” shall mean the person established in that capacity pursuant to Clause 2.1;

“Contractor's Software” means the Contractor's Standard Software, the Third Party Software, the Modified Software and the Custom Software, all being subject to the Services;

“Contractor's Standard Software” or **“Standard Software”** means the software programs proprietary to the Contractor, provided under the D&B Contract (and as updated pursuant to its terms);

“Control” means in relation to a body corporate, the power of a person to secure that the affairs of the body corporate are conducted in accordance with the wishes of that person:

- (i) by means of the holding of shares, or the possession of voting power, in or in relation to that or any other body corporate; or
- (ii) by virtue of any powers conferred by the articles of association, or any other document, regulating that or any other body corporate

“Critical Fault” means any Fault within the NRO ETCS Level 1 Trackside System that directly results in Iarnród Éireann being unable to conduct its essential business operations and/or operate the Network, as defined in the Performance Regime;

“CRR” means Commission for Railway Regulation in Ireland;

“D&B Contract” has the meaning given to it in the Recital to this MSSC;

“Damage” means the occurrence of a Fault, except where:

- (i) it is caused by a **“Defect”** (arising under and as defined in the D&B Contract); or
- (ii) it is caused by a failure or default of the Contractor or any Sub-Contractor or their respective employees or agents in the performance of the Scope of Services; or
- (iii) it arises as a result of the carrying out of maintenance activities by or on behalf of Iarnród Éireann where the maintenance manuals and/or training manuals provided by or on behalf of the Contractor under the D&B Contract and/or this MSSC were insufficient to enable the relevant activities to be properly performed;

“Data Protection Legislation” means the data protection and information privacy laws of Ireland and the European Union including but not limited to, the Data Protection Acts 1988-2018, the European Communities (Electronic Communications Networks and Services) (Privacy and Electronic Communications) Regulations 2011, the General Data Protection Regulation (Regulation (EU) 2016/679) (the “GDPR”), and any legislation from time to time which implements or amends Directive 95/46/EC or Directive 2002/58/EC all as amended or replaced from time to time, and any other legislation, codes of practice, guidance, guidelines and/or opinions regarding data protection.

“Dispute Resolution Procedures” means the procedures referred to at Clause 24;

“Escrow” means the escrow arrangements contemplated under Clause Z10.5 of the D&B Contract, which pursuant to Clause 9.3, is applicable to the Contractor’s supply of MSS IPR (including Maintenance Releases, New Releases and certain potential additional code pursuant to the provision of the Services);

“Escrow Agreement” means the agreement in respect of the Escrow;

“Execution Date” means the date of execution of this MSSC, as set on the first page hereof;

“Equipment” means items provided by the Contractor and used by it to provide the Scope of Services but which do not comprise Iarnród Éireann’s Parts or Contractor’s Parts;

“Extension Term” shall have the meaning set out in Clause 3.3(b);

“Fault” means in relation to the NRO ETCS Level 1 Trackside System, or any Part or Special Tool, any problem or deficiency with the NRO ETCS Level 1 Trackside System or Part or Special Tool (including, without limitation, any non-conformance with its Specification), where such failure is reproducible by the Contractor, within the fault categories set out in the Performance Regime;

“First Level Support” means the first level or first level support service, provided by Iarnród Éireann in respect of the maintenance of NRO ETCS Level 1 Trackside System, utilising its own resources, or those of a third party service provider, as set out in the Scope of Services;

“Fixed Charge” has the meaning given to such term in Schedule 8 (Maintenance Pricing Schedule);

“Governance and Contract Management Procedures” means the policies and procedures governing the governance and contract management of this MSSC, as set out in 0;

“Iarnród Éireann Additional Parts” means such Parts and Special Tools as Iarnród Éireann may purchase from the Contractor from time to time pursuant to paragraph 2.4 of Schedule 2;

“Iarnród Éireann Data” means personal data (as defined in Data Protection Legislation), software, information, text, drawings, images or sounds, embodied or held in any electronic or tangible medium, owned or controlled by Iarnród Éireann Group (including, but not limited to, owned by CIE), or owed by a third part in respect of whom Iarnród Éireann owes obligations of confidentiality and data safekeeping, being used by Iarnród Éireann Group in the conduct of its business;

“Iarnród Éireann Fault” means any Fault in relation to Parts and Special Tools which is caused by:

- (i) vandalism (other than if caused by the Contractor, its Sub-Contractors, or their respective employees or agents); or
- (ii) Damage;

“Iarnród Éireann Initial Parts” means those Parts and Special Tools supplied by the Contractor to Iarnród Éireann pursuant to the D&B Contract;

“Iarnród Éireann Parts” means all Parts and Special Tools owned by Iarnród Éireann, comprising:

- (i) Iarnród Éireann Initial Parts (which are included in the Minimum Stock Holding); and
- (ii) any Iarnród Éireann Additional Parts (which do not form part of the Minimum Stock Holding);

“Iarnród Éireann Required Variation” has the meaning given to such term in Clause 5;

“Iarnród Éireann’s Representative” shall mean the person established in that capacity pursuant to Clause 2.1;

“Initial Term” shall have the meaning set out in Clause 3.3(b);

“IPR” means intellectual property rights including patents, trade marks, service marks, trade names, design rights, copyright (including rights in computer software and databases), moral rights, rights in know-how, rights in domain names and other intellectual property rights, in each case whether registered or unregistered, and including applications for the grant of any such rights and all rights or forms of protection having equivalent or similar effect anywhere in the world (and the term “IPR” includes intellectual property rights which are Moral Rights).

“Ireland” means Ireland, excluding Northern Ireland;

“Key Personnel” means the members of the Contractor Personnel, whom the Parties agree are of particular importance to that Party’s performance of its obligations in the supply of the Services, as set out in the Scope of Services (Schedule 2) and as may be further agreed in writing between the Parties;

“Law” means any law applicable in Ireland including common law, statutes, statutory instruments, by-laws, rules, codes, regulations, decisions, proclamations, notices, directives, constitutions, instruments, rules of court, delegated or junior legislation or statutory requirement;

“Maintenance Plan” means a plan agreed between the Parties, in accordance with the Governance and Contract Management Procedures, setting out certain matters in respect of the implementation and supply of the Service, the initial version of which is as set out in 0;

“Measurement Period” means the period over or in respect of which the Contractor achievement of Service levels is measured, being per Payment Period, unless otherwise set out in the Performance Regime;

“Minimum Records” means:

- (i) all necessary information for the evaluation of claims or variations, whether or not relating to Sub-Contractors;
- (ii) management accounts, information from management information systems and any other management records;
- (iii) correspondence;
- (iv) variation files (including documentation covering negotiated settlements);
- (v) schedules covering; timetable and progress towards completion;
- (vi) commitments (agreements and leases) relating to the MSSC;
- (vii) detailed inspection records;
- (viii) such materials prepared in relation to the invitation to tender and subsequent tendering process relating to cost breakdowns, in each case which have not already been provided to the Iarnród Éireann;
- (ix) accounts and records of the Fixed Charge for work done to date and all other amounts to be paid to the Contractor under this MSSC;
- (x) test and commissioning results; and
- (xi) help desk response records;

“Minimum Stock Holding” means the minimum number and composition of Parts and Special Tools specified in the Scope of Services and 2 of this document (including Clause 30 of D&B Contract), which shall comprise of Iarnród Éireann Initial Parts and any relevant Contractor's Parts;

“Moral Rights” means the moral rights to which any author of a copyright work is entitled under any legislation now existing, or in future, enacted in any part of the world.

“MSS Activities” means all the activities that the Contractor is to undertake under the terms of this MSSC, together with all continuing rights of Iarnród Éireann following expiry or earlier termination of this MSSC;

“MSS IPR” shall take the meaning ascribed to the term in Clause 9.1(a);

“MSS Trigger Event” means an event, the occurrence of which shall entitle Iarnród Éireann to apply to the Escrow Agent for release of the MSS IPR from Escrow, pursuant to the provisions of the Escrow Agreement;

“MSSC” means this Maintenance Support Services Contract;

“New Release” means a new release under this MSSC of all or part of the Supported Software, Designs and data, suitable for use by Iarnród Éireann, in respect of which one or more modifications, enhancements, improvements, revisions and/or updates have been made, or to which additional functions have been added, which is not a Maintenance Release;

“NIS Directive” means the Directive on Security of Network and Information Systems (EU) 2016/1148;

“Open Book” means that prices should be supplied on an open book basis, and (unless otherwise agreed with the Iarnród Éireann) based upon a competitive procurement process where applicable;

“Payment Claim Date” means the date the last day of each Payment Period during the Term, save that if such date falls other than on a Business Day, such date shall be deemed to fall on the next following Business Day;

“Payment Period” means the period used for the purposes of ascertaining the dates for applications for payment under Clause 8.2, there being thirteen (13) such periods during each Year of the Term as follows:

- (i) the first Payment Period in the first Year of the Term shall commence on the Commencement Date;
- (ii) the first Payment Period in each subsequent Year of the Term shall commence on the day after the expiry of the thirteenth Payment Period of the preceding Contract Year.
- (iii) each Payment Period except for the thirteenth (13th) Payment Period in any Year of the Term shall be of a 28 day duration running from the date of its commencement;
- (iv) the thirteenth (13th) Payment Period in each full Year of the Term shall be extended until the last day of that Year;

and accordingly:

- (v) the first (1st) Payment Period in each full Year of the Term shall start on the first day of that Year; and
- (vi) the thirteenth (13th) Payment Period in each full Year of the Term shall end on the last day of that Year;

“Performance Regime” means the performance regime in respect of the Services, as set out in and measured in accordance with the provisions of Schedule 3;

“Permitted Development Use” means changes which the Contractor shall authorise Iarnród Éireann to make, whether using its own or third party supplier resources, as set out in the Scope of Services;

“Permitted Use” means a use for the purposes of or in connection with:

- (a) maintaining the NRO ETCS Level 1 Trackside System including to implement the services contemplated to be provided under the MSSC;
- (b) the operation and use of the NRO ETCS Level 1 Trackside System;
- (c) integrating or connecting all or any part of the NRO ETCS Level 1 Trackside System with any other works comprised in or which are elements of the Network or any Rail Assets (whether those other works were provided by Iarnród Éireann or a third party);
- (d) the decommissioning of the NRO ETCS Level 1 Trackside System and/or the transition to a replacement system at the end of the useful life of the NRO ETCS Level 1 Trackside System (or parts of it);
- (e) ongoing training and development of a team of competent operations, maintenance and project managing staff in respect of the NRO ETCS Level 1 Trackside System;

“Policy Documentation” has the meaning set out in the D&B Contract, as such documentation may be revised, updated and/or replaced, whether in whole or in part, by Iarnród Éireann, during the Term, with the versions current as of the Commencement Date set out in the Scope;

“Price List” means the pricing information set out at Schedule 8 (Maintenance Pricing Schedule), as the Parties may agree to amend from time to time;

“Records, Test Bed and/or Simulation Equipment Service” means the service set out in the Scope of Services and as further defined in this MSSC;

“Regulations” means the European Communities (Protection of Employees on Transfer of Undertakings) Regulations 2003;

“Regulator” means where applicable all present and future regulatory bodies having jurisdiction over the Iarnród Éireann and CIE including, but not limited to:

- the CRR,
- the Department of Transport, Tourism and Sport,
- the National Transport Authority,
- Office of the Data Protection Commissioner of Ireland (and any replacement or successor authority),
- Information Commissioner of Ireland,
- the Health and Safety Authority,
- the Railway Accident and Investigation Unit,

any independent investigation units of those bodies and/or any other statutory body or regulatory authority which regulates on an ongoing basis or from time to time the business or operations of the Iarnród Éireann and CIE;

"Replacement Part" means Parts used to replace equivalent items fitted to or used in the NRO ETCS Level 1 Trackside System which are taken off the NRO ETCS Level 1 Trackside System to be repaired or refurbished either after a fixed period of use or when they fail in service;

"Representative" means a party nominated to act as a representative of either the Contractor or IE;

"Review Meeting" means the meetings to be held periodically by the Parties as contemplated in section 2 of O;

"Schedule of Rates" means the schedule of rates payable by Iarnród Éireann and set out in Schedule 8 (Maintenance Pricing Schedule) in respect of the Services identified at Clause 3.1(b).

"Scope" has the meaning given to the term in the D&B Contract;

"Scope of Services" means the Services identified in Clause 3.1;

"Security Requirements" means the Iarnród Éireann information security requirements in respect of: (i) the Contractor as a supplier of goods and/or services to Iarnród Éireann; (ii) the Contractor as the supplier of the Scope of Services; and (iii) the supply of the Scope of Services, as may be revised by Iarnród Éireann during the Term, which shall include within its scope the technical and organisational security measures set out in Clause 14, together with matters applicable to the Contractor pursuant to the Iarnród Éireann position as an operator of essential service pursuant to the NIS Directive;

"Security Tests" means test procedures, including (without limitation) tests of IT general controls, tests of IT application controls, penetration tests, code analysis, compliance scans and vulnerability scans, and **"Security Testing"** shall be construed accordingly;

"Security Testers" means employees, agents and/ or third parties engaged by or on behalf of Iarnród Éireann to perform Security Tests;

"Serious Service Failure" means were Service Points of five hundred and fifty (550) or greater accrue in respect of any three (3) consecutive Measurement Periods, as further set out in the Performance Regime;

"Service Levels" means the service levels which shall be achieved, as a minimum requirement, in respect of the provision of the Services, measured over any Measurement Period, as set out in the Performance Regime;

"Service Points" shall have the meaning set out in the Performance Regime;

"Services" shall take the meaning ascribed to the term in Clause 3.1

"Site" shall have the meaning being, the ETCS fitted area (Phase 1 to Phase 9) in accordance with in accordance with D&B contract;

"Specification" means the specification of the NRO ETCS Level 1 Trackside System contained within the Scope and any specifications provided by the Contractor and agreed by Iarnród Éireann;

“Store” means the location and form of store, determined by Iarnród Éireann, for storage of NRO ETCS Level 1 Trackside System Spares, which may change its location and form, as determined by Iarnród Éireann, but which unless notified in writing by Iarnród Éireann, shall be located at the Site;

“Sub-Contractor” means any person to whom a contract has been given by the Contractor for the performance of any of the Services, including for the supply of any of Parts or the like as part of or in connection with the performance of the Contractor's obligations under this MSSC and includes a subcontractor or supplier (in each case of all tiers) of any such person;

“Supplied Equipment” means all or any part of the Contractor Hardware, Special Tools or Parts supplied or to be supplied by the Contractor under the terms of the D&B Contract (whether or not manufactured by the Contractor) including all work done or to be done on or in respect of the Contractor Hardware, Special Tools or Parts or the design, development, manufacture, supply, installation, testing or commissioning thereof in compliance with the Scope of Work, and in addition, as subject to the Services;

“Technically Competent” means meeting the competency requirements and standards set out in the relevant competency framework approved by Iarnród Éireann, as are relevant to the role and/or activities to be undertaken by the relevant Contractor Personnel and, to the extent that access to the Network is required, duly accredited for such purposes;

“Term” means the term of this MSSC, as set out in Clause 3.3;

“Third Party Software” means the software programmes (if any) listed in the D&B Contract as supplied by a third party licensor, or licensed by the Contractor, but being proprietary to a third party, as updated by the applicable third party and pursuant to the supply of the Services;

“Timetable” means the timetable or programme agreed between the Parties, in accordance with the Governance and Contract Management Procedures, setting out the proposed order and timing of the Contractor's delivery of the Service, the initial draft of which is set out in 0;

“Wilful Default” being an act or omission constituting a breach of the MSSC done or omitted to be done:

- (i) with the deliberate intention of causing loss or damage; or
- (ii) with reckless disregard for the potential of causing such loss or damage;

“Year” means each period of thirteen (13) consecutive Payment Periods during the Term.

Schedule 2 - Scope of Services

The following is a summary of the Maintenance Scope of Services. Maintenance of the Installed NRO ETCS Level 1 Trackside System. This summary is supplemented by the relevant Clauses of this Maintenance Contract. In the event of any inconsistency between this Schedule and the relevant Clauses, the Clauses will prevail.

1 INTRODUCTION

Maintenance activities are classified in three ways:

- **1st Level:** Are the physical maintenance activities undertaken by IÉ staff directly. These activities are either preventative or reactive (repair) in nature. Level 1 is for operations/diagnostics/monitoring support, where “On call” technical support in the event of a malfunction or error of the ETCS system.
- **2nd Level:** These are activities that require the supplier’s specialist engineering involvement. Level 2 is for Assessment of Physical, Technical or performance issues with TPS equipment. Both options of online & site support should be provided as required.
- **3rd Level:** Level 3 is Software release updates – to be provided as necessary to maintain operation of the system for its intended lifetime of 30 years. Both options of online & site support should be provided as required.

The Contractor will provide support to IÉ for 1st level maintenance and will undertake directly 2nd and 3rd level maintenance activities. It is the Contractor’s responsibility to look after all the software, keep it up to date, maintain it and get it back up and running where it is not functioning correctly. The Contractor retains this central liability for software releases and updates (unless otherwise agreed in writing with IÉ).

Collectively, the following is a summary of the Scope of Services. This summary is supplemented by the relevant Clauses of this Contract. In the event of any inconsistency between this Schedule and the relevant Clauses, the Clauses will prevail.

2 FIXED CHARGE SERVICES

The provision of the Services referred to in this Section 2 are included within the Fixed Charges (save to the extent provided to the contrary in Section 2 as set out below).

2.1. Minimum Services Required

Irish rail requires the remote technical support from Contractor as per Table 2 in Schedule 8.

Notes:

- Service 1 – “On-Call” Technical support is required during standard office working hours. Services include system specific expertise to assist Irish Rail with fault finding and fix. Maximum of 20 Hours Per Month is to be included for emerging support requests and ongoing support. Labour included is Engineer/Designer and Senior Engineer.
- Service 2 – “Technical support” is required during standard office working hours. Services include system specific expertise to assist Irish Rail with fault finding and fix. Maximum of 5 Hours Per Month is to be included for emerging support requests and ongoing support. Services to include the receipt of faulty equipment, investigation and analysis of fault (including Failure Investigation Reports), and return of corrected equipment. Faulty equipment is to be assessed and returned to Irish Rail within 2 months of receipt by Contractor.

- Service 3 – “Software release” updates are to be provided as necessary to maintain operation of the system for its intended lifetime of 30 years.

2.2. Off-Site Technical Support Services

The Contractor will provide off-site telephone technical support through the "Fault Reporting Centre" where all Iarnród Éireann calls will be logged with the time and date to allow tracking of the progress of all reported faults and the Contractor shall use its reasonable efforts to respond to Iarnród Éireann, all in accordance with the requirements of the Service Levels and Performance Regime.

- (a) In order to assist the Contractor in the provision of the Technical Support Service, Iarnród Éireann shall provide reasonable and necessary information to enable the Contractor to diagnose errors in the supported SET System; and
- (b) The Contractor shall maintain documented processes detailing its methodology in respect of these Services. This documentation shall be made available to Iarnród Éireann, upon request.
- (c) The Contractor will provide twenty-four (24) hour telephone support, seven (7) days a week, over the full year.
- (d) Initial calls will be answered by a live operator within 45 seconds of initiation of the call, with all calls logged with unique reference numbers, also provided to the caller.
- (e) The response time requirements and support service & repair obligations are set out as follows:
 - (i) Operational Hours, Monday to Sunday 05:00 to 01:00 hours: (excluding 25th & 26th December).
 - The Contractor will provide a response from a technically competent engineer with knowledge relevant to the Fault identified by Iarnród Éireann within 60 minutes of the Fault being logged with the Fault Reporting Centre.
 - The Contractor shall provide immediate and appropriate resources and continuous support to rectifying the fault until a fix is implemented. The fix could be deemed temporary in order to get traffic moving / reduce workload to normal level. Where a temporary fix is provided the Contractor shall provide a permanent fix within one week.
 - (ii) Outside Operational Hours, Monday to Sunday: 01:00 to 05:00 hours (incl. 24-hour cover on the 25th & 26th December).
 - The Contractor will provide a response from a technically competent engineer with knowledge relevant to the Fault identified by Iarnród Éireann within 300 minutes (or as agreed with IE) of the Fault being logged with the Fault Reporting Centre.
 - The Contractor shall provide immediate appropriate resources and continuous support to rectify the fault until a fix is implemented.

- (f) The Contractor will provide reports and recommendations for the support and maintenance of the NRO ETCS Level 1 Trackside System on a continuous basis, as required.
- (g) The Contractor shall establish and maintain a FRACAS (Fault Recording, Analysis and Corrective Action System) for the duration of the maintenance support services contract.
- (h) The Contractor shall propose a FRACAS system for review, comment and acceptance by IE.
- (i) The Contractor will ensure that appropriately qualified and briefed Personnel attend joint review meetings with Iarnród Éireann for the duration of the defects liability period at not more than three-month intervals, to address FRACAS issues. Following the expiration of the defects liability period, the frequency of these review meetings will change to six-month intervals. The purpose of these meetings is to consider the performance, reliability, availability and maintainability of the NRO ETCS Level 1 Trackside System, and to determine improvements which may be required. The review will include data collected, and improvements proposed, by the Contractor.
- (j) The Contractor will provide preliminary advice on how Major Maintenance Activities might be carried out (such as organising blockades) to assist Iarnród Éireann in determining the best way of carrying out maintenance work on the Network and shall provide maintenance and technical support in relation to Major Maintenance Activities.

2.3. On Site Technical Support Service

- (a) In all instances where a Fault arises (that is not due to Iarnród Éireann), then all required on-site technical support is deemed part of the Fixed Charge and all associated costs including any travel and accommodation costs, for rectifying the Fault will not be chargeable to Iarnród Éireann.
- (b) The Contractor will provide an on-site presence at Iarnród Éireann's request to support Iarnród Éireann's maintenance staff in rectifying Faults and will diligently maintain such presence and continue work until Iarnród Éireann accepts that the Fault has been corrected or the work has been completed. Such on-site presence may require transition between members of the Contractor's staff and the Contractor shall ensure all such transition is effected so as to provide a seamless service.
- (c) A Technically Competent engineer with competence relevant to the fault will report on site within 24 hours of the Fault being logged with the Fault Reporting Centre and OnSite Technical Support Services being requested.
- (d) If Iarnród Éireann requests On-Site Technical Support Services in what Iarnród Éireann considers an emergency, the Contractor will use best endeavours to provide a Technically Competent engineer with competence relevant to the fault on site as quickly as possible and in any event within 12 hours of such request.

2.4. Equipment Supply

The contractual Defects Liability period is 24 months from the issue of the Conditional Certificate of Acceptance. A Conditional Certificate of Acceptance will be issued when a Stage 5 APIS Cert (Interim Operations) has been received. As APIS 5 is approved, this commences a 24-month Defects Liability period for services and equipment supplied by Contractor.

Following APIS 5 approvals and phase being commissioned Supply is required by Irish Rail of all replacement parts needed to maintain the normal operation of the TPS, please see Table 3 Equipment Supply Charges in Schedule 8 of this document.

The prices for Spare Parts are as set out in the Pricing Document in Activity schedule of D&B contract and are subject to Indexation in the manner provided for under Clause 20 of that contract. Storage and security of all of the Spare Parts shall be the responsibility of the Contractor under this Agreement.

The Contractor is required to ensure full traceability for repairable spares and will provide detailed causal information for failed components from its supply chain into the reliability analysis.

The Contractor will provide spares to Iarnród Éireann in Dublin. Iarnród Éireann will provide a location for the spares within the Irish Rail store network locations.

2.5. Balise and LEU Programming tool

All maintenance tasks that cannot be performed by Irish Rail Staff (replacement of component, batteries, software update, calibration) and are needed to keep the programming tool in service shall be performed by Contractor.

The LEUs and Balises configuration data shall be updated on all programming tools delivered to Irish Rail at every new release.

2.6. Obsolescence and Technology Management Service

- (a) By 1st April in each year following the Effective Date the Contractor shall submit to Iarnród Éireann for review, comment and acceptance a rolling three-year obsolescence and technology management plan, which will:
 - (i) detail the obsolescence risks and issues which are expected to arise in respect of each trackside ETCS Level 1 Trackside System including the Software over the three-year period;
 - (ii) consider the impact of these risks and issues for IE operations of the system;
 - (iii) outline the obsolescence risks for the next two years in respect of each aspect of the ETCS Level 1 Trackside System including the Software;
 - (iv) include the Contractor's recommendations for mitigation of the obsolescence risks.
- (b) The obsolescence and technology management plan will detail the steps being taken, and to be taken, by the Contractor to mitigate the risks and will report on progress.

- (c) The obsolescence and technology management plan will cover both equipment manufactured by the Contractor and equipment manufactured by its sub-contractors or third parties.
- (d) The Contractor shall be fully responsible for the costs of managing obsolescence throughout the Term, and for implementing actions up to the end of the Term, to ensure the continuous availability, supply and support of components of the ETCS Level 1 Trackside System (including Software) in accordance with its then current three-year obsolescence plan.
- (e) The Contractor, unless otherwise agreed with the Iarnród Éireann Representative, shall use its reasonable endeavours to ensure that all updated components (including Maintenance Releases and New Releases) are fully:
 - (i) backward compatible with and to the then installed components of the Software, in form, fit and function; and
 - (ii) forward compatible with and to the Software, in accordance with the Common Development Path and Contractor standard development path in respect of the Standard Software, as notified in writing to Iarnród Éireann by the Contractor.
- (f) The Contractor shall notify Iarnród Éireann in writing where it proposes to cease to supply or support any Contractor Hardware, reflecting a corporate policy applicable to a particular version, release or module, and affecting all applicable customers worldwide. Contractor notification shall be provided not less than six (6) months prior to the lead time for ordering or manufacturing the relevant components. Iarnród Éireann shall be entitled at its entire discretion to purchase such amount of components as it deems appropriate, at the prices set out in Schedule 08 (Maintenance Pricing Schedule). Where Iarnród Éireann does purchase components for obsolescence management reasons, then, Iarnród Éireann may require the Contractor to store such components (at the Contractor's cost) at a location managed by the Contractor, and such components shall constitute Iarnród Éireann's Parts to which the provisions of paragraph 2.4 shall apply.
- (g) The Contractor must provide equipment refresh options should any relevant original equipment manufacturer announce end of sale notices for equipment that could affect the security and reliability of the CBI system. The Contractor is required to provide Iarnród Éireann annually with updates to product roadmaps highlighting future developments of the product suit, forecasting obsolesces of system components and nomination of alternatives.

2.7. Technical Library Service

- (a) The Contractor is required to deposit any revisions to the ETCS Level 1 Trackside System related documentation in the Technical Library and any revisions to source code materials which in either case are necessary in order to reflect any correction of a fault, specifying the nature of the correction and providing instructions for the

proper use of the corrected version of the ETCS Level 1 Trackside System (including the supported software).

(b) The Contractor will undertake the following:

- (i) Retain detailed information for the life of the ETCS Level 1 Trackside System on the design rationale for each of the systems (and sub-systems of the ETCS Level 1 Trackside System where applicable) in terms of how they were designed, including all drawings and relevant design calculations. The information will be updated by the Contractor as appropriate for any modifications undertaken on the System.
- (ii) Retain, manage and update records for configuration design changes for the ETCS Level 1 Trackside System template and drawings, specifications and all other information affected by the configuration change including without limitation manuals, instructions and parts lists for all systems, sub-systems and components and the Parts to enable operational and safety assessments to be made for the ETCS Level 1 Trackside System as they exist at the relevant time and from time to time, rather than as they were originally designed.
- (iii) Provide to Iarnród Éireann an asset record for each spare part or any other item which is delivered to IE. These records will include as a minimum the equipment description, serial number, location of installation and history of repair and replacement prior to delivery. Further details of the records (if any) will be agreed with IE.

(c) The Contractor shall:

- (i) promptly, after the Commencement Date, take over responsibility for and maintain:
 - a. the secure physical facility or facilities for the storage of Technical Information at the technical library established for the purposes of the D&B Contract; or
 - b. the secure electronic facility for the remote access of Technical Information established for the purposes of the D&B Contract;

The physical and/or electronic facilities referred to in this sub-Clause (a) shall together constitute the “Technical Library”, and all Technical Information shall be required to be deposited and maintained in accordance with this paragraph 3.4, subject to which facility the Contractor decides to establish and maintain;

- (ii) as and when Technical Information is produced from time to time, in the case of the electronic facility:

- a. promptly and, in any event within seventy two (72) hours of it being produced in respect of safety related Technical Information and within one hundred and twenty (120) hours of it being produced in the case of other Technical Information, ensure that a copy of that Technical Information is placed in the Technical Library, where such Technical Information is produced by the Contractor or any company in the Contractor's Group; and
- b. promptly and, in any event within seventy two (72) hours of it being produced in respect of safety related Documentation and within one hundred and twenty (120) hours of it being produced in the case of other Technical Information, ensure that a copy of that Technical Information is placed in the Technical Library, where such Technical Information is produced by any Sub-Contractor other than a company in the Contractor's Group;

AND notify Iarnród Éireann within twenty-four (24) hours of such amendment to the Technical Library;

- (iii) as and when Technical Information is produced from time to time, in the case of the physical facility:

- a. promptly and, in any event within seven (7) calendar days of it being produced, ensure that a copy of that Technical Information is placed in the Technical Library, where such Technical Information is produced by the Contractor or any company in the Contractor's Group; and
- b. promptly and, in any event within seven (7) calendar days of it being produced, ensure that a copy of that Technical Information is placed in the Technical Library, where such Technical Information is produced by any Sub-Contractor other than a company in the Contractor's Group;

AND notify Iarnród Éireann within twenty-four (24) hours of such amendment to the Technical Library;

- (iv) as and when Technical Information previously placed in the electronic facility of the Technical Library is updated from time to time:

- a. promptly and, in any event within seventy two (72) hours of such update in respect of safety related Technical Information and within one hundred and twenty (120) hours of such update in the case of other Technical Information, ensure that an updated copy of that Technical Information is placed in the Technical Library, where such Technical Information is updated by the Contractor or any company in the Contractor's Group; and
- b. promptly and, in any event within seventy two (72) hours of such update in respect of safety related Technical Information and within one hundred and twenty (120) hours of such update in the case of other Technical Information, ensure that an updated copy of that Technical Information is placed in the Technical Library, where such Technical Information is updated by any Sub-Contractor other than a company in the Contractor's Group;

AND notify Iarnród Éireann within twenty-four (24) hours of such update to the Technical Library;

- (v) as and when any commissioning activity is undertaken, promptly and, in any event within seven (7) days of completion of such commissioning activity, ensure that a copy or updated copy (as applicable) of any Technical Information relating to such commissioning activity is placed in the Technical Library, and notify Iarnród Éireann within twenty-four (24) hours of such update to the Technical Library;
- (vi) as and when Technical Information previously placed in the physical facility of the Technical Library is updated from time to time:
 - a. promptly and, in any event within seven (7) days of such update, ensure that an updated copy of that Technical Information is placed in the Technical Library, where such Technical Information is updated by the Contractor or any company in the Contractor's Group; and
 - b. promptly and, in any event within seven (7) days of such update, ensure that an updated copy of that Technical Information is placed in the Technical Library, where such Technical Information is updated by any Sub-Contractor other than a company in the Contractor's Group;

AND notify Iarnród Éireann within twenty-four (24) hours of such update to the Technical Library;

- (vii) establish a catalogue, in a format approved by Iarnród Éireann's Representative, of all Technical Information deposited in the facilities from time to time and update that catalogue whenever any such Technical Information is deposited in the Technical Library;

- (viii) deliver one copy of the catalogue established under sub-Clause (g) (and any updated version thereof) to Iarnród Éireann's Representative;
- (ix) deposit any revisions to the Technical Information in the Technical Library and any revisions to Source Code Materials to be held in Escrow under the terms of the Escrow Agreement, which in either case are necessary in order to reflect any correction of any Fault specifying the nature of the correction and providing instructions for the proper use of the corrected version of the SET System (including the Supported Software);
- (x) permit the Iarnród Éireann Representative (or its nominee who may not be a competitor of the Contractor) to have access to the physical Technical Library (if applicable) established under section 3.4(c) above from time to time during normal business hours following reasonable advance notice from the Iarnród Éireann Representative (or its nominee) to the Contractor's Representative, and to the electronic Technical Library established under section 3.4(c) above at all times, (on a 24 hour basis, each day of the year) by way of electronic remote access with access to be provided to back up facilities if the main facility is off-line for any reason, such access to include the ability to print the contents of the Technical Library;
- (xi) for the purposes of sub-sections (vii) and (viii), the catalogue must identify all Technical Information deposited in the facilities, a brief description of its purpose or function, its owner and, where applicable, its version number and its configuration state (including where relevant the configuration baseline for the software or hardware with which such Technical Information interfaces) and all requirements for specific computer hardware and/or software (including software versions) necessary for accessing, reading and/or modifying information included in the catalogue;
- (xii) if an audit of the contents of the Technical Library against the current catalogue under sub-section (x) reveal that the catalogue does not contain details of categories or types of Technical Information which should be contained within the Technical Library, then, Iarnród Éireann may request and the Contractor shall grant access by the Iarnród Éireann Representative to the Technical Library from time to time and during business hours in order to audit the contents of the Technical Library to determine whether such categories and types of Technical Information are in fact contained within the Technical Library. Any such request shall be made with reasonable notice and shall indicate with reasonable clarity the Technical Information or the type of Technical Information which is required for review;
- (xiii) where the contents of the Technical Library comprises Software, the Contractor shall ensure that the object code of such Software includes all executable files, executable code and application data associated with the Software, and shall keep such copies updated in line with current industry

practice so that a skilled person can access the Software and maintain it as may be reasonably necessary;

- (xiv) as part of the Technical Library Service, the Contractor shall also provide an electronic change control and configuration management service which shall conform with industry recognised standards and permit Iarnród Éireann to be able to review and audit changes to relevant aspects of the ETCS Level 1 Trackside System by way of unique Parts references and version/Parts numbers and dates during which relevant versions and/or Parts numbers were current and the Contractor shall update such information on an on-going basis, within twenty-four (24) hours of the relevant change or update and shall use an industry recognised standard system to record all document versions and updates to them. The service shall also include promptly notifying Iarnród Éireann of all modifications made to Source Code (within twenty-four (24) hours of the relevant modification being approved for use);
- (d) The Contractor shall:
 - (i) ensure that it is entitled to deposit in the Technical Library any safety-critical information (including safety-critical DRACAS Information or FRACAS Information) which is not produced or generated by it; and
 - (ii) use reasonable endeavours to ensure that it is entitled to deposit in the Technical Library any other DRACAS Information or FRACAS Information.

3 Changes to TPS

From time-to-time Irish Rail will look to implement changes to the trackside infrastructure such as the removal or installation of points and crossings or signals etc. This section of the MSSC seeks to define the types of changes which will be required and set out standard timeframes and costs that are associated with infrastructure modifications.

3.1. Generic Application - Definition of Changes to the TPS

Generic Application changes are included in this service level agreement specification. Please see Table 5 Generic Application Change Charges in Schedule 8 of this document.

3.2. Specific Application - Definition of Changes to the TPS

Table 6(schedule 8) identifies the type of changes that are likely to be introduced in the life of the NRO trackside ETCS subsystem.

Table 6 (schedule 8) only considers 'Specific Application' changes, i.e., changes to implementing functions already defined in the Contractor Generic Application.

Table 6(schedule 8) also introduces the definition of unit costs for each type of change.

4 Cost Model for Engineering Changes

4.1. Unit Cost estimate

For visibility and overall cost estimate purposes each unit price indicated in Table 6 (Schedule 8) and reminded in bullets below, shall be broken down as if they were implemented independently. This division of cost elements is as described in Table 7 (Schedule 8) and reminded below:

- LEU Packet data change – “LEU-Data”
- Balise Telegram Packet data change – “Bal-Data”
- LEU Configuration change – “LEU-Conf”
- Minor LEU Hardware Change – “LEU-HW-Minor”
- Major Hardware Change – “LEU-HW-Major”

Note: These costs shall not include any site activity (installation or T&C). Section 7 requests a separate schedule of rates for site works if they need to be undertaken by Contractor.

The V&V, safety and preliminary cost shall consider that all required onsite works (installation and T&C) have been performed and reported by competent staff in accordance with Contractor processes (these competent staff can be either Irish Rail or Contractor staff, or a third party). The V&V and safety cost shall include all works required from Contractor to achieve IMSAP and APIS approval if required.

The V&V and safety costs shall not include the cost related to data validation which is included in the ‘Data Design and validation’.

4.1.1 Cost Estimate of the system Change (CCN)

STEP 1

When Irish Rail requests a system change, Contractor shall break down this change into one or several unit changes, see examples below.

Examples:

- 1- CCN-A: Change of location and value of a speed sign:
 - i. 5 fixed balises requiring a change of SSP (P27), i.e. **5 x Bal-Data**
 - ii. 3 telegrams of 2 LEUs requiring a change of SSP (P27), i.e. **2 x LEU-Data**

- 2- CCN-B: Addition of a new speed sign:
 - i. 2 fixed balises requiring a SSP (P27) change: **2 x Bal-Data**
 - ii. 1 fixed balise requiring change of SSP (P27) and simplification of gradient profile (P21) to free up space 1: **2 x Bal-Data**
 - iii. 2 LEUs requiring SSP (P27) change in two telegrams : **2 x LEU-Data**

- 3- CCN-C: Addition of 1 repositioning balise to improve safety on approach to a short overlap signal:

- i. 1 new Balise Telegram with header only: **1 x Bal-Data**
- ii. 2 fixed balises requiring two changes of linking information (P5) to include the new balise: **2 x Bal-Data**

4- CCN-D: Fitment of a shunt signal and transmission of packet 40 in another signal:

- i. 1 new LEU: **1 x LEU-HW-Major**
- ii. 3 fixed balises requiring two changes of linking information (P5) to include the new fitted signal balise group: **3 x Bal-Data**
- iii. 1 existing LEU that requires a same change of linking information (P27) in 2 'straight route' telegrams, and the addition of a current consumption information (P40) in one 'diverging route' telegram. **2 x LEU-Data**

STEP 2

For a given system change requested in a CCN, the overall cost will be reduced as the number of unit changes increases, as per Table 8 (Schedule 8) and reminded below

The X% relates to the economy of scale that can be achieved by combining several changes into one same delivery. Note that the economy cannot be identical for 2 changes (e.g. the change of two packets in one same telegram) or 200 changes (e.g. 50 new balises with 4 packets). for that reason the preceding pivot table has been set up.

The supplier shall use Table 6,7 and 8 (Schedule 8), along with attached cost sheet and the below logic to calculate the overall cost, which follows the logic described below:

1- CCN 'functional design' cost:

The CCN 'functional design' cost is calculated by taking the single highest applicable 'functional design' unit cost, and adding an extra X% for each additional unit change of the CCN:

CCN 'functional design' cost = Highest applicable 'functional design' unit cost * (1 + X% (Y - 1)), where Y is equal to the total number of single changes applicable to the CCN.

2- CCN 'HW design' cost

The CCN 'HW design cost' is the sum of all individual 'hardware designs' unit costs. It is assumed that no economy of scale can be achieved with the production and delivery of individual HW designs.

3- CCN 'data design and validation' costs:

The CCN 'data design and validation' cost is calculated by taking the single highest applicable "data design and validation" unit cost, and adding an extra X% for each additional change of the CCN:

CCN 'data design and validation' cost = Highest applicable 'data design and validation' unit cost * (1 + X% (Y - 1)), where Y is equal to the total number of single changes applicable for the CCN.

4- CCN 'V&V and safety' cost

The CCN 'V&V and safety' cost is calculated by taking the highest applicable 'V&V and safety' unit cost, and adding an extra X% for each additional change in the CCN:

CCN 'V&V and safety' cost = Highest applicable 'V&V and safety' unit cost * (1 + X% (Y - 1)), where Y is equal to the total number of single changes applicable for the CCN.

5- CCN 'Overheads' cost

The CCN 'Overheads' cost is calculated by taking the highest applicable "Overheads" unit cost, and adding an extra X% for each additional change in the CCN:

CCN 'Overheads' cost = Highest applicable 'Overheads' unit cost * (1 + X% (Y - 1)), where Y is equal to the total number of single changes applicable for the CCN.

6- Overall CCN cost

Refer to attached template to estimate the overall cost for the CCN.

4.2. Timescale and steps for CCN implementation

The following figure depicts the timescale required for the responses and implementation of a CCN, post commissioning under MSSC tenure.

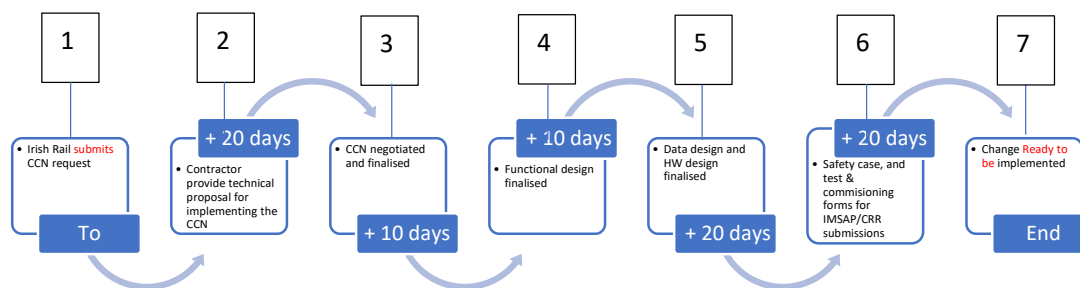


Figure 1 Steps and Timeline of CCN Implementation.

From the point that Irish Rail issues a CCN Request to when the change is ready to be implemented is 80 days.

4.3. **Additional Site Support for T&C**

The supplier shall provide a schedule of rates for the presence of onsite resources on the Irish Rail network or in Irish Rail premises to perform the required on-site static T&C or works, and associated reporting.

The resources shall be capable of performing all the required calibration, installation, checks, tests and reporting on all TPS equipment, (LEU, Balise, Cables, Location cases, Mounting Supports, USIT Tool, etc.). Please see table 09 and 10

Schedule 3 – Performance Regime

1. Off-Site Technical Support Service

The Contractor will answer the telephone and log the Fault within 1 minute of Iarnród Éireann telephoning the Contractor to report the Fault. The Contractor will ensure that a Technically Competent engineer will telephone Iarnród Éireann within a maximum of 60 minutes of Iarnród Éireann telephoning to report the Fault. If this time limit is breached the corresponding service points will apply as detailed in Table 1.

2. Not Used

3. On-Site Technical Support Service:

The Contractor will provide a Technically Competent engineer with experience relevant to the fault on the applicable sub-system within 5 days of Iarnród Éireann telephoning to report the Fault. If this time limit is breached service points will apply as detailed in Table 1.

4. Service Monitoring

Both parties will monitor the Service provided in Clauses 1 to 3 above and record the levels of service that are achieved. The contractor's records shall be provided to Iarnród Éireann upon request and as part of the monthly report.

Event		Service Points (per event)
	Off-Site Technical Support Services	
(i)	Failure to answer the telephone within 1 minute	1
(ii)	Failure to reply by a Technically Competent engineer within 1 Hour	10
	On-Site Technical Support Services	
(iii)	Failure to provide on-site technical support within 5 days;	50

Table 1 - Service Points Application

5. Escalation Procedure

(a) If the total Service Points exceed 200 points within a Payment Period, the Contractor will put a recovery plan in place and submit this to Iarnród Éireann no later than two (2) weeks after the end of the period in which it occurred. Once Iarnród Éireann has approved the recovery plan, the Contractor will implement it. Failure to implement the recovery plan will constitute a material breach of this Maintenance Contract.

(b) If total Service Points exceed 550 points in three (3) consecutive Payment Periods, the Parties' chief executives will meet with each other to discuss how this can be avoided in

future. This meeting is to occur no later than two (2) weeks after the end of the period in which it occurred (or as soon as is reasonably practicable).

(c) Following that meeting, the Contractor will put a recovery plan in place and once the Iarnród Éireann Representative has approved that plan, the Contractor will implement it. Failure to implement the recovery plan will constitute a material breach of this Maintenance Contract.

6. Payment Adjustment

Service Points: The amount of the Service Points abatement for each Payment Period will be calculated in accordance with the following formula:

= P^* multiplied by S where:

P^* is the actual number of Service Points allocated in the Payment Period;

S is €500

Schedule 4 - Governance and Contract Management Procedures

Application

- 1 The Governance and Contract Management Procedures shall be applied by Iarnród Éireann and the Contractor in relation to all matters arising under the Scope of Services, other than disputes which are referred by either Party for resolution in accordance with the Dispute Resolution Procedure.

Parties Representatives

- 2 Each Party shall appoint a representative to be responsible for the day to day management of the performance and delivery of the ETCS Level 1 Trackside System on their behalf (respectively the “Iarnród Éireann Representative” and the “Contractor’s Representative” and together the “Representatives”). The Representatives are empowered to act on behalf of the Parties that have appointed them in connection with the day-to-day management of the performance and delivery of the Services.
- 3 No changes may be made to:
 - (a) the Scope of Services (as set out in Schedule 2Error! Reference source not found.);
 - (b) the Maintenance Plan in 0 (as updated by the Parties pursuant to this Schedule 4);
 - (c) the Timetable in 0 (as updated by the Parties pursuant to this 0);
 - (d) the pricing of the Services (as set out in Schedule 8 (Maintenance Pricing Schedule))

and no work may be carried out by the Contractor for Iarnród Éireann outside of the scope of the Scope of Services without the prior written agreement of the Representatives of both Parties.

Review Meetings

- 4 To facilitate daily operational contact between the Parties in order to optimise the Services, the Parties shall ensure that their Representatives shall conduct a review meeting at least once every week, or as otherwise agreed between the Parties, to discuss the day to day management of the performance and delivery of the Scope of Services (the “Review Meeting”).
- 5 For the purpose of each Review Meeting, the Contractor shall prepare and provide to Iarnród Éireann at least 2 days in advance of each Review Meeting a written report:
 - (a) detailing the Contractor performance of the Services against the Maintenance Plan;
 - (b) detailing the Contractor performance of the Services against the Service Levels when measured over the last Measurement Period, including, detailing any Service Points incurred in respect of such Measurement Period;
 - (c) containing details of any accidents affecting safety occurring during the performance of the Services and the measures the Contractor is taking in relation to them;

- (d) detailing any improvements to the delivery of the Services under this MSSC to avoid the recurrence of the Contractor incurring Service Points, or any other incentivisation measures under this MSSC; and
 - (e) containing any other information that Iarnród Éireann may reasonably require for the purposes of monitoring the performance of the Contractor in the performance of the Services, And, as further set out in the Governance and Contract Management Procedures.
- 6 The agenda for each Review Meeting shall include (but not be limited to) the following:
- (a) reviewing the previous Review Meeting's minutes;
 - (b) reviewing compliance with this Maintenance Contract;
 - (c) reviewing progress of Scope of Services against the Timetable, and agreed costs
 - (d) reviewing issues and risks associated with this Maintenance Contract and/or the Scope of Services;
 - (e) discussing any issue of concern or matter of interest to either party;
 - (f) discussing any proposed solutions for addressing issues of concern or interest to either party; and
 - (g) reviewing any issues and items for consideration under the Change Control procedure;
- 7 The minutes of all Review Meetings shall be taken and kept by the Iarnród Éireann Representative and issued to the Contractor's Representative (within a reasonable period) for written approval by the Contractor.
- 8 The Contractor's Representative shall provide the Iarnród Éireann Representative (in the report formats and layouts and with the level of detail specified by Iarnród Éireann from time to time) with full information on the day to day management of and the performance and delivery of the Services, including without limitation:
- (a) a summary of any instances of non-compliance with this MSSC;
 - (b) a summary of any issues of concern raised, resolved and outstanding;
 - (c) any expected or likely failures to comply with any requirement in respect of the Services including but not limited to the Timetable, or the agreed costs set out therein;
 - (d) the management of the Contractor's Personnel;
 - (e) summary of all monies received by the Contractor in relation to the Scope of Services and any invoices outstanding in respect of the Scope of Services; and
 - (f) any other matters that Iarnród Éireann may request.

Liaison Committee

- 9 In addition to the daily operational contact between the Parties, the Parties shall formally liaise with each other during the Term through the Liaison Committee to be established in

accordance with these procedures in order to facilitate communication between the Parties and to achieve, inter-alia, a more efficient delivery of the Scope of Services.

- 10 Contractor shall prepare the reports set out below during the Term.
- 11 Within thirty (30) days of the Commencement Date a liaison committee (the “Liaison Committee”), shall be established by the Parties, which shall consist of the following persons:
 - (a) Iarnród Éireann Contract Manager;
 - (b) one (1) other person nominated by Iarnród Éireann; and
 - (c) two (2) persons nominated by Contractor.
- 12 Iarnród Éireann and Contractor shall each be entitled to change any of its nominated representatives on the Liaison Committee with suitably qualified and experienced replacements, by giving not less than 14 days written notice of such change to the other Party, as soon as reasonably practicable and, in any event, prior to any meeting of the Liaison Committee. The replacement nominated representative shall be reasonably acceptable to the other Party, who shall communicate any concerns in relation to the replacement nominated representative within 7 days of receipt of notice, which concerns shall be discussed between the Parties in good faith. The Parties recognise the mutual benefit in maintenance of nominated representatives agreeable to the other Party.
- 13 Without prejudice to the generality of paragraph 9 above the following matters shall be subject to the Liaison Procedure:
 - (a) reviewing implementation of this Scope of Services;
 - (b) reviewing arrangements for the delivery of the Deliverables;
 - (c) the control of change, by way of Change Orders, under the Scope of Services; and
 - (d) matters to be referred to the Dispute Resolution Procedure.
- 14 Iarnród Éireann and Contractor shall use their reasonable endeavours to ensure that:
 - (a) meetings of the Liaison Committee are called:
 - (i) at least every month. In addition, further meetings of the Liaison Committee shall be called within five (5) Working Days of the request of either Party;
 - (ii) unless agreed to the contrary by Iarnród Éireann, the Liaison Committee meetings shall be held at the premises of Iarnród Éireann, during normal business hours;
 - (b) an agenda of any proposed Liaison Committee meeting:
 - (i) is prepared by Iarnród Éireann in consultation with Contractor and circulated in sufficient time prior to any meeting to enable all Liaison Committee members to attend the meeting well prepared
 - (ii) shall, at least, include the following matters:
 - contract performance;
 - performance standards;
 - quality of service;

- charges; and
 - control of change;
- (c) the Parties have at their disposal at the Liaison Committee meeting all information and personnel necessary for a meaningful discussion of the items on the agenda and shall ensure persons suitably qualified to consider the matters on any agenda circulated pursuant to paragraph 14(b) attend the relevant Liaison Committee meetings;
- (d) minutes of Liaison Committee meetings are prepared by Iarnród Éireann and a report (based on the minutes) shall be prepared by Iarnród Éireann (the **“Liaison Committee Report”**) setting out in detail:
- (i) all matters discussed by the Liaison Committee at any relevant meeting (and, in particular, indicating any matters which have been discussed and agreed and/or not agreed); and
 - (ii) where any matter has not been agreed, the steps the Liaison Committee propose to take to settle the relevant matter (including whether the recommendation of the Liaison Committee is that the matter should be referred to the Dispute Resolution Procedure);
- (e) the minutes and Liaison Committee Report shall be forwarded by Iarnród Éireann to Contractor for acceptance, within a reasonable period thereafter;
- (f) once the minutes and Liaison Committee Report, including any agreed changes thereto, have been agreed and signed by the Parties, they shall be deemed to be an authoritative record of the matters discussed and agreed (and the Contractor shall at all times act reasonably and in good faith in agreeing the minutes and Liaison Committee Report); and
- (g) the Liaison Committee Reports shall be circulated by Iarnród Éireann, within five (5) Working Days of any Liaison Committee meeting, to the Liaison Committee members and to such additional persons as may be proposed by Iarnród Éireann and/or Contractor.
- 15 The Parties shall use their reasonable endeavours to ensure that the matters agreed between them pursuant to the Liaison Committed meetings are implemented in respect of the provision of the Services going forward therefrom.

Maintenance Plan and Timetable

- 16 As a first order of business after the Execution Date the Liaison Committee shall address:
- (i) the draft Maintenance Plan provided at 0 of this MSSC; and
 - (ii) the draft Timetable provided at 0 of the MSSC.
- a) The Parties shall consider the contents of both documents and each shall advise the other by notice in writing prior to the relevant Liaison Committee meeting of anything in either document that is considered an error or omission in the plan whereupon the committee shall debate the content of each Party’s notice in good faith and agree any amendment. The Parties agree and acknowledge that the Maintenance Plan and/or the Timetable must be amended where either are inconsistent with this MSSC.

- b) Where the Parties cannot agree on the final forms of the Maintenance Plan and/or the Timetable, such disagreement shall be referred to the Dispute Resolution Procedure.
- c) When all issues are resolved, the revised Maintenance Plan and Timetable shall be signed by both Parties' Representatives and shall thereafter be binding as the Maintenance Plan and the Timetable respectively (and reference to either of these documents in the MSSC shall be deemed to be the documents so signed pursuant to this paragraph 15 of 0).

Schedule 5 – Maintenance Plan

Schedule 6 - Timetable

Schedule 7 - Insurance

The Contractor shall maintain the following insurances for the following terms:

1. Public Liability Insurance: A policy insuring against a party's liability for any losses or damages due to damage or destruction of property or death or personal injury of any person arising out of the Contractor's performance of this MSSC (Public Liability Insurance) for an amount not less than €15,000,000 (fifteen million euro) per occurrence to be maintained at all times during the Term of the Contract to include an indemnity to principals clause.
2. Employer Liability Insurance: A policy insuring against liability for any claims, damages, losses and expenses (including legal fees and expenses) arising out of the injury to, or disease or death of any person employed by the Contractor in the course of the Contractor's performance of this MSSC (Employer's Liability Insurance) for an amount not less

€13,000,000 (thirteen million euro) per occurrence to be maintained at all times during the Term of this MSSC to include an indemnity to principals clause.

3. Product Liability Insurance: A policy insuring against a party's liability for any losses or damages due to damage or destruction of property or death or personal injury of any person arising due to the products used by the Contractor in the performance of the Services under the Contract (Product Liability Insurance) for an amount not less than €15,000,000 (fifteen million euro) per occurrence to be maintained at all times during the Term of the Contract to include an indemnity to principals clause.
4. Professional Indemnity Insurance: A policy of professional indemnity insurance as against Claims made against the Contractor arising out of its failure to use the skill and care normally used by professionals designing and implementing services similar in scope and complexity to the Services with a minimum indemnity limit of not less than €10,000,000 (ten million euro) on an each and every claim basis such policy to for 12 years after the expiry of the Term or termination of the MSSC for whatever reason.
5. Motor TPPD: A motor vehicle insurance (as required by the Road Traffic Acts) and including third party property damage insurance policy having unlimited bodily injury cover and also covering third party property damage for an amount of not less than €2,600,000 (two million six hundred thousand euro) each and every claim to include an indemnity to principals clause.

Schedule 8 - Maintenance Pricing Schedule

16.1. Fixed Charge Services

Item Ref	Description	Duration of Service	Cost Per Year €'s
1	"On-call" technical support in the event of a malfunction or error of the ETCS system/	Ongoing for duration of this MSSC. <u>Maximum</u> of 20 Hours Per Month.	
2	Assessment of Physical, Technical or performance issues with TPS equipment.	Ongoing for duration of this MSSC. Annual Fee	
3	Software release updates – to be provided as necessary to maintain operation of the system for its intended lifetime of 30 years.	Ongoing for the duration of this MSSC. Annual fee	

Table 2 Fixed Charge Services

16.2. Equipment Supply Charges

Item Ref	Type of Equipment	Cost of Unit Per Year 1-5 €'s Excluding VAT	Maximum duration of replacement equipment order in months (lead time).
1	LEU's		
2	Balise		
3	Cable Kits		
4	MIPS		
5	Tail Cables		
6	Mounting support		

Table 3 Equipment Supply Charges

16.3. Balise and LEU Programming tool

Item Ref	Type of Equipment	Unit	Cost of Unit Per Year 1-5 €'s Excluding VAT	Maximum duration of replacement equipment order in months (lead time).
1	Programming Tools support	Per year		
2	Programming Tools replacement	Per tool		

Table 4 USIT Tools Support Charges

16.4. Generic Application Change Charges

Item Ref	Details of GA Change or Addition	Cost €'s Excluding VAT per document impacted	Minimum-Maximum number of document impacted
1	Minor Change - existing generic HW design or function slightly altered	€	Min....- Max....
2	Medium Change - existing generic HW design or function significantly altered	€	Min....- Max....
3	Major Change - New generic HW design or function	€	Min....- Max....

Table 5 Generic Application Change Charges

16.5. Specific Application Change Charges

Change Type	Description	Example Use Case	Cost per LEU Impacted (excl. VAT)	Cost per Balise Impacted (excl. VAT)
Packet data change	One or several changes in variable values of <u>one ETCS packet</u>, or addition of a packet, or removal of a packet, e.g. - Change of Telegram Header - Change of MA parameter (length and/or section timer and/or release speed) - Change of Static Speed Profile (location and/or value) - Change of Gradient Profile (location and/or value) - Change of a signal or track occupation limit location - Change of linking chain (location and/or Balise ID and/or linking reaction) - Addition of a simple packet without modification of other packets in the telegram Note: the introduction of a new fixed balise is only seen as telegram data change from the engineering perspective. The number of packets included in such new fixed balise will dimension the cost of the balise.	- Change of speed sign - Signal relocation - Relocation of point end - Addition of a balise in the linking chain - Addition of 'danger for shunting' information packet without modification of other packets in the message.	Unit Price: Cost for making a change/addition/removal of <u>one packet</u> in up to all telegrams of one LEU: LEU-Data € _____ Note: the cost shall include the cost for data Design and Validation.	Unit Price: Cost for making a change/addition/removal of <u>one packet</u> in the fixed telegram of a balise: Bal-Data € _____ Note: the cost shall include the cost for data Design and Validation.

Change Type	Description	Example Use Case	Cost per LEU Impacted (excl. VAT)	Cost per Balise Impacted (excl. VAT)
LEU Configuration change	Modification of configuration parameters of the LEU: - Response time - Detection threshold of existing inputs Note: No hardware modification in this type of change	- Changing response time of a LEU input which stabilizes slowly - Changing the detection threshold of LEU input	Unit Price: Cost for making 1 configuration change in input/output data or configuration of one LEU: LEU-Conf € _____	N/A
Minor LEU Hardware Change	Minor Hardware change: - Addition of one infill balise to an existing LEU - Addition of one input Note: this change <u>includes</u> the required LEU Telegram (LEU-Data) or Configuration (LEU-Conf) modification associated with the LEU HW change Note: if the changes <u>also</u> require a modification of balise telegram, fixed or controlled, this will be costed separately, as a Balise telegram change 'Bal-Data'.	- Additional signal aspect to be addressed by the existing LEU(s). - Additional infill Balise	Cost for making one Minor HW change in the HW configuration LEU-HW-Minor € _____	N/A

Change Type	Description	Example Use Case	Cost per LEU Impacted (excl. VAT)	Cost per Balise Impacted (excl. VAT)
Major Hardware Change	Major hardware change - Addition of a LEU to a single LEU configuration to sense more than 6 inputs or connect to more than 2 balises - New signal fitment Note: this change <u>includes</u> LEU Telegram (LEU-Data) or Configuration (LEU-Conf) modification associated with the LEU HW change Note: if the changes <u>also</u> require a modification of balise telegram, fixed or controlled, this will be costed separately, as a Balise telegram change 'Bal-Data'.	- Additional signal aspect to be addressed by an additional LEU. - New signal fitment -	Cost for major LEU configuration update: LEU-Major € _____	N/A

Table 6 Specific Application Change Charges

Single Change	Functional Design Cost	HW Design Cost	Data Design and validation Cost	V&V and safety cost	Overheads
LEU-Data	€	N/A	€	€	€
Bal-Data	€	N/A	€	€	€
LEU-Conf	€	N/A	€	€	€
LEU-HW-Minor	€	€	€	€	€
LEU-HW-Major	€	€	€	€	€

Table 7 Unit Cost Split per Packet

Total Number of changes in CCN	Between 1 and 5	Between 6 and 50	Above 50
Cost ratio functional design	-%	-%	-%
Cost ratio data design and validation			
Cost ratio V&V and Safety			
Cost Ratio Overheads			

Table 8 - Cost Reduction Factor X

16.6. Additional Site Support Charges for T&C

Duration Shifts	PRCom Daily Rates (excl. VAT)	Signalling Tester in Charge Daily Rates (excl. VAT)	Other, to be specified Daily Rates (excl. VAT)
1-3	€	€	€
4-10	€	€	€
11-20	€	€	€
21-60	€	€	€

Table 9 Schedule of rates for competent T&C resources

Duration Shifts	Signalling Verifications Tester Daily Rates (excl. VAT)	Signalling Functional Tester Daily Rates (excl. VAT)	Signalling Test Assistant Daily Rates (excl. VAT)	Other, to be specified Daily Rates (excl. VAT)
1-3	€	€	€	€
4-10	€	€	€	€
11-20	€	€	€	€
21-60	€	€	€	€

Table 10 Schedule of rates for competent site resources

Schedule 9 – Exit Plan

16.0. Timetable for an Exit Plan.

- (a) Within fourteen (14) days of either Party serving notice to terminate this MSSC or by the date being sixty (60) days before the date of expiry of the Term, as appropriate (the “**Relevant Date**”), representatives of the Parties shall meet to discuss the timetable for drawing up an Exit Plan covering the performance of the obligations of the Parties during the period of sixty (60) days following, either, the date of termination or expiry, as appropriate (the “**Exit Period**”). The Parties shall use their good faith endeavours to finalise the final form Exit Plan as soon as practicable. The Exit Plan may supersede and replace the terms of this draft Exit Plan, which is intended to set out the main terms to be included within the Exit Plan. In the event that Parties fail to agree in relation to any term of the Exit Plan, then, the relevant term of this draft Exit Plan shall apply. In any event, the Contractor shall provide such cooperation, information and assistance to Iarnród Éireann and/or its replacement supplier of goods and/or services as is reasonably required to transfer, and to enable a smooth migration of, the Solution, either in-house or to an alternative supplier, including, but limited to, the performance of the obligations referred to in this Exit Plan.

16.1. During the Exit Period the Contractor shall, to the extent not already done:

- (a) not knowingly take any steps which would increase the costs payable by Iarnród Éireann at termination;
- (b) not make any changes to the NRO ETCS Level 1 Trackside System otherwise than in accordance with the Change Control Procedure;
- (c) provide copies of all Iarnród Éireann Data and any items of Iarnród Éireann Intellectual Property Rights and Iarnród Éireann Documentation used in the NRO ETCS Level 1 Trackside System;
- (d) provide details of all Contractor owned assets used solely in the NRO ETCS Level 1 Trackside System, all commercially available Contractor owned Intellectual Property, all third party Intellectual Property acquired by the Contractor in/as part of the NRO ETCS Level 1 Trackside System used for Iarnród Éireann direct use and other third party contracts which the Contractor is using as part of the NRO ETCS Level 1 Trackside System;
- (e) within seven (7) days after the Relevant Date, hand-back all Iarnród Éireann issued security passes and authorisations relating to the Contractor’s personnel, agents, or sub-contractors;
- (f) within seven (7) days after the Relevant Date, return all Iarnród Éireann Confidential Information, including all copies thereof and all Service related documentation properly required by Iarnród Éireann and not being Contractor internal documentation not intended for review by Iarnród Éireann;

- (g) provide Iarnród Éireann with a detailed description and status report of all then unresolved Service related errors, problems, together with any planned or agreed changes not yet implemented;
- (h) provide all of the normal periodical reports ordinarily provided during the Term made up to the effective termination or expiry date or closest date possible; and
- (i) promptly and fully answer all reasonable questions about the NRO ETCS Level 1 Trackside System which may be asked by Iarnród Éireann for the purpose of adequately understanding the NRO ETCS Level 1 Trackside System or for the purpose of allowing any new supplier (or potential new supplier) to conduct 'due diligence'.

16.2. Rights of access

- (a) All rights of access and occupation granted to the Contractor in respect of premises owned or occupied by Iarnród Éireann and/or CIE shall cease when the MSSC is subject to expiry or early termination in accordance with its terms.
- (b) The Contractor shall procure that the NRO ETCS Level 1 Trackside System is managed in such a way as to result in there not being any undertaking or part of an undertaking (within the meaning of the Regulations, the business of which is the provision of the Solution, or any part thereof. If, notwithstanding such obligation, the Regulations apply to transfer the employment of any person employed by the Contractor to Iarnród Éireann or any new supplier, then, the Contractor shall indemnify and keep indemnified Iarnród Éireann against all costs, claims, losses, liabilities and expenses which Iarnród Éireann may incur arising from the following:
 - (i) all claims (including but not limited to a claim for income tax, PRSI, youth employment levy, health contribution levy or income tax levy and any interest, duties and penalties thereon) which may be made against Iarnród Éireann by the Revenue Commissioners or the Department of Social, Community and Family Affairs for tax arising from the supply out by the Contractor of the Solution; and/or
 - (ii) any order or award by any tribunal, court or third party arising out of a determination that the Contractor Staff are employees of Iarnród Éireann whether pursuant to Section 13 of the Unfair Dismissals (Amendment) Act, 1993 (as amended), under the Regulations, or otherwise.
- (c) Following performance by the Contractor of all of its obligations specified in the Exit Plan to the reasonable satisfaction of Iarnród Éireann, Iarnród Éireann will sign a copy of the plan to confirm Contractor discharge, whereupon the Contractor's obligations under the Exit Plan shall cease.
- (d) Iarnród Éireann shall pay the Contractor for performing the Exit Plan obligations, with payment calculated on the basis agreed between the Parties, or where not otherwise agreed, based on the professional service rates set out in Schedule 8 (Maintenance Pricing Schedule), or if not set out therein the then current Contractor time and materials rates.

- (e) In the event of any dispute arising between the Parties in relation to the provision of this Exit Plan, or any matter deriving there from, including, but not limited to, the number or level of Contractor personnel allocated, to perform the Exit Plan obligations, the dispute shall be referred to the Dispute Resolution Procedure.